

Section 36.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
46 & 47 Vict. c. 62.	The Agricultural Holdings (Scotland) Act, 1883.	The whole Act.
60 & 61 Vict. c. 22.	The Market Gardeners' Compensation (Scotland) Act, 1895.	The whole Act.
63 & 64 Vict. c. 50.	The Agricultural Holdings Act, 1900.	The whole Act, so far not repealed.
6 Edw. 7. c. 56.	The Agricultural Holdings Act, 1906.	The whole Act, so far not repealed.

CHAPTER 65.

An Act to regulate and amend the Law relating to Summary Jurisdiction and Criminal Procedure in Scotland.
[21st December 1908]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled and by the authority of the same, as follows :

PRELIMINARY.

Short title and
commence-
ment.

1. This Act may be cited for all purposes as the Summary Jurisdiction (Scotland) Act, 1908, and shall come into operation on the first day of June nineteen hundred and nine.

Interpretation
terms.

2. In this Act, which, except where otherwise indicated shall apply to Scotland only, the following words and expressions are used in the following senses, unless the context shows that a different sense is intended :—

"Appellant" shall mean any party appealing against the judgment of a court of summary criminal jurisdiction :

"Bail" shall include any pledge lodged by or on behalf of an accused person as security for his appearance at an diet of court :

"Cause" means and includes every proceeding brought under this Act :

"Clerk of court" shall mean the clerk of any court of summary criminal jurisdiction, and shall include deputy clerk, and any person duly authorised to exercise the duties of clerk of court :

- "Clerk of justiciary" shall mean the clerk of the High Court, and shall include any person duly authorised to represent or act for such clerk:
- "Complaint" shall include summons and information, and any schedule or list annexed to any complaint:
- "County" shall extend to the limits within which a sheriff has jurisdiction in criminal matters, whether by statute or at common law, and shall include district of a county:
- "Court" shall mean any court of summary criminal jurisdiction, and shall include sheriff court, justice of peace court, burgh court, police court, and the court of the bailie of the river and firth of Clyde:
- "District of a county" shall mean any part of a county in which a separate sheriff court is held and for which a separate procurator fiscal is appointed:
- "Extract conviction" or "extract of previous conviction" shall include certified copy conviction, certificate of conviction, and any other document under the hand of the proper officer in use to be issued from any court of justice of the United Kingdom as evidence of a conviction or convictions:
- "High Court" shall mean High Court of Justiciary:
- "Judge" shall mean any sheriff, justice of the peace, and any magistrate or other judge of a court of summary criminal jurisdiction:
- "Justice of the peace" shall mean any of His Majesty's justices of the peace for any county or county of a city in Scotland acting within such county or county of a city:
- "Law agent" shall mean a law agent enrolled in terms of the Law Agents (Scotland) Act, 1873, and any Act explaining or amending that Act: 36 & 37 Vict. c. 63.
- "Offence" shall mean an act or attempt or omission punishable by law:
- "Officer of law" shall include chief constable, deputy chief constable, constable, criminal officer, sheriff officer, prison warder, and any person having authority to execute a warrant of court:
- "Order" shall mean any order, byelaw, rule, or regulation having statutory authority:
- "Penalty" shall include fine and any sum of money which may, under the authority of any statute or order, be recoverable from any person in respect of the contravention of any statutory requirement or prohibition, and any sum which may, under the authority of any statute or order, be recoverable as a penalty or forfeiture, or of which a court has power to order payment, as also the forfeiture of any article where such forfeiture is authorised by statute or order:

"Prosecutor" shall include procurator-fiscal, assistant procurator-fiscal, burgh prosecutor, and any other person prosecuting in the public interest, private prosecutor, and complainer, and any person duly authorised to represent or act for any public prosecutor :

"Respondent" shall mean and include any party to an appealed cause other than the appellant :

"Statute" shall mean any Act of Parliament, public general local, or private, and any Provisional Order confirmed by Act of Parliament :

"Witness" shall include haver.

Appeal.

3. The Acts mentioned in Schedule A. to this Act are, to the extent specified in the third column of that schedule, hereby repealed, and all statutes, laws, and usages, so far as the same are inconsistent or at variance with the provisions of this Act, are hereby repealed.

JURISDICTION.

Application of

& 28 Vict.

53.

& 45 Vict.

33.

& 39 Vict.

32.

4. This Act so far as relating to summary procedure shall apply to summary proceedings in respect of (a) any offence which might prior to the passing of this Act, or which may under the provisions of this or any future Act, be tried in a summary manner ; (b) any offence or the recovery of a penalty under any statute which does not exclude summary procedure ; (c) any order ad factum præstandum, or other order of court or warrant competent to a court of summary criminal jurisdiction ; and shall apply to procedure in all courts of summary criminal jurisdiction in so far as they have jurisdiction in the matters aforesaid. Where any statute provides for proceedings being taken under the Summary Procedure Act, 1864, the Summary Jurisdiction (Scotland) Acts, 1864 and 1881, or under any general or local Police Act, or under any public general or local Act incorporating any section of any Act hereby repealed, or for appeal under the Summary Prosecutions Appeals (Scotland) Act, 1875, such proceedings or appeal shall be taken under this Act.

This Act shall, notwithstanding any special provisions to the contrary contained in any of the statutes relating to His Majesty's revenue under the control of the Commissioners of Inland Revenue or the Commissioners of Customs, apply to all summary proceedings under or by virtue of any of the said statutes ; and in such proceedings it shall be lawful to grant decree for the condemnation of goods seized as forfeited under the provisions of the said Acts, and prosecutions under the Revenue Acts shall, without prejudice to any appeal competent under this Act, continue to be subject to appeal to quarter sessions and to the Court of Exchequer in Scotland in manner

Act, 1908.

Provided that, where the sum adjudged by conviction under or by virtue of any of the said statutes to be paid exceeds fifty pounds, the period of imprisonment imposed in respect of the non-payment of such sum may exceed three months but shall not exceed six months.

Nothing in this Act shall extend or be construed to extend to any warrant or order for the removal of any poor person who is or shall become chargeable to any parish or district, nor to any information or complaint or other proceeding under or by virtue of any statutory provision for the recovery of any rate, tax, or impost whatsoever.

5. The enactments contained in the sections of the Criminal Procedure (Scotland) Act, 1887, which are set out in Schedule B. to this Act shall apply to proceedings under this Act except where there is anything in any section which specially applies to procedure in the High Court and in the sheriff and jury court, the words "summary complaint" being substituted for the word "indictment," and the words "offence punishable on summary complaint" being substituted for the word "crime" and the expression "indictable crime" respectively, and the word "court" being substituted for the word "jury."

Application
of Act
50 & 51 Vict.
c. 35.

6. Nothing contained in this Act shall affect any right to sue for any penalty, or to apply for any order of court or other warrant ad factum præstandum in the court of session or sheriff court, but it shall not be competent to sue for penalties in the small debt court.

Civil pro-
ceedings for
penalties.

7. The jurisdiction and powers of all courts of summary criminal jurisdiction, except in so far as the same may be altered or modified by this or any future Act, shall remain as at the commencement of this Act, and the justice of peace court and justices of the peace, and also any judge of police or burgh magistrate, shall, without prejudice to any other or wider powers conferred by statute, be entitled to exercise within their respective jurisdictions power on convicting of a common law offence—

Jurisdiction
and powers of
courts.

- (1) To award imprisonment with or without hard labour for any period not exceeding sixty days;
- (2) To impose a fine not exceeding ten pounds;
- (3) To ordain the accused (in lieu of or in addition to the said imprisonment or fine) to find caution for good behaviour for any period not exceeding six months and to an amount not exceeding twenty pounds;
- (4) Failing payment of the said fine or failure to find the said caution, to award imprisonment according to the scale prescribed by this Act; provided always that in no case shall the total imprisonment exceed sixty days.

8. A court of summary criminal jurisdiction (other than the sheriff court) shall not have jurisdiction to try or to pronounce sentence in, but shall, to the extent and in the manner in the

Certain crimes
not to be tried
in inferior
courts.

next succeeding section mentioned, be entitled to take cognizance of, the case of any person found within the jurisdiction of such court, and brought before such court accused or suspected of having committed at any place beyond the jurisdiction of such court any offence, or the case of any person brought before such court accused of or suspected of having committed within the jurisdiction thereof any of the following offences:—

- (1) Murder, culpable homicide, robbery, rape, wilful fire-raising, or attempt at wilful fire-raising;
- (2) Stouthrief, theft by housebreaking, or housebreaking with intent to steal;
- (3) Theft, or reset of theft, to an amount exceeding ten pounds; or theft, or reset of theft, aggravated by two previous convictions of any offence inferring dishonest appropriation of property, or theft by opening lock-fast places;
- (4) Falsehood, fraud, and wilful imposition to an amount exceeding ten pounds, or falsehood, fraud, and wilful imposition aggravated by two previous convictions of any offence inferring dishonest appropriation of property;
- (5) Breach of trust and embezzlement to an amount exceeding ten pounds, or breach of trust and embezzlement aggravated by two previous convictions of any offence inferring dishonest appropriation of property;
- (6) Assault whereby any limb has been fractured, or assault with intent to ravish, or assault to the danger of life, or assault by stabbing;
- (7) Uttering forged documents or uttering forged bank or banker's notes, or offences under the Acts relating to coinage:

Provided that it shall not be deemed a conviction within the meaning of this section if the accused has been dismissed with an admonition or placed on probation without any sentence having been subsequently pronounced.

omit to
higher court
other juris-
diction.

9. If either in the preliminary investigation or in the course of the trial it shall appear that the offence charged is one which cannot competently be tried in the court, or is one which, in the opinion of the court owing to the circumstances of the case, should be dealt with by a higher court, it shall be lawful for the court to commit the accused to prison for examination for any period not exceeding four days, and the prosecutor shall forthwith give notice of such committal to the procurator fiscal of the county within which such offence was committed, or to such other official as may be entitled to take cognizance thereof, in order that the accused may be dealt with according to law.

10.—(1) Where an offence is committed in any harbour, river, arm of the sea, or other water (tidal or other) which runs between or forms the boundary of the jurisdiction of two or more courts, such offence may be tried by any one of such courts. Boundaries of jurisdiction.

(2) Where an offence is committed on the boundary of the jurisdiction of two or more courts, or within the distance of five hundred yards of any such boundary, or partly within the jurisdiction of one court and partly within the jurisdiction of another court or courts, such offence may be tried by any one of such courts.

(3) Where an offence is committed on any person or in respect of any property in or upon any carriage, cart, or vehicle whatsoever employed in a journey by road or railway, or on board any vessel whatsoever employed in a river, lake, canal, or inland navigation, such offence may be tried by any court through whose jurisdiction such carriage, cart, vehicle, or vessel passed in the course of the journey or voyage during which the offence was committed, and, where the side, bank, centre, or other part of the road, railway, river, lake, canal, or inland navigation along which the carriage, cart, vehicle, or vessel passed in the course of such journey or voyage is the boundary of the jurisdiction of two or more courts, such offence may be tried by any one of such courts.

(4) Where several offences, which if committed in one county could be tried under one complaint, are alleged to have been committed by any person in different counties, the accused may be tried for all or any of said offences under one complaint before the sheriff of any one of such counties.

(5) Where an offence is authorised by this section to be tried by any court, it may be dealt with, heard, tried, determined, adjudged, and punished as if the offence had been wholly committed within the jurisdiction of such court.

11. The sheriff shall, without prejudice to any other or wider powers conferred by statute, have power on summarily convicting any person of a common law offence— Summary powers of sheriff.

(1) To impose a fine not exceeding twenty-five pounds :

(2) To ordain the accused to find caution for good behaviour for any period not exceeding twelve months and to an amount not exceeding twenty-five pounds, said caution being either in lieu of or in addition to a fine or in addition to imprisonment as herein-after in this section mentioned :

(3) Failing payment of said fine, or on failure to find said caution, to award imprisonment as prescribed in section forty-eight of this Act :

(4) To award imprisonment, with or without hard labour, for any period not exceeding three months.

The sheriff shall have a concurrent jurisdiction with every other court within his sherrifdom in regard to all offences competent for trial in such courts.

In certain cases, sentence not exceeding six months' imprisonment competent.

12. Where a person is charged with any offence inferring dishonest appropriation of property, or attempt thereat, aggravated by at least two previous convictions of any such offence, or where a person is charged with any offence inferring personal violence aggravated by at least two previous convictions of any such offence, he may on summary conviction by the sheriff without prejudice to any wider powers conferred by statute be sentenced to imprisonment for any period not exceeding six months with or without hard labour.

Trial of certain offences.

13. Any offence described in any statute as a "misdemeanour" or a "crime and offence" may be tried in the sheriff court either by indictment or summarily, and, if tried summarily, the imprisonment competent on conviction shall without prejudice to any wider powers conferred by statute not exceed three months.

PROCEDURE PRIOR TO TRIAL.

Chief constable in certain cases may accept of bail.

14. Upon the apprehension of any person charged with any offence which may be competently tried before a court of summary criminal jurisdiction (other than the sheriff court), it shall be lawful for the chief constable, or other officer of police having charge in absence of the chief constable at any police office or station, to accept bail or deposit, by a surety or by such person, that such person shall appear for trial before such court, or before the sheriff court, at some time and place to be specified, and at all after diets of court, and to liberate the person so apprehended upon bail being found to an amount not exceeding twenty pounds or upon the deposit of any money or article of value to the amount of the bail fixed; and the chief constable or other officer of police, if deposit be accepted, shall immediately enter the same in a book to be kept for the purpose, and grant an acknowledgment for the money or article so deposited, in which acknowledgment the time and place fixed for the accused's appearance shall be set forth: Provided always that the chief constable or other officer of police may refuse, if he see cause, to accept bail in any shape; and the refusal to accept bail or deposit, and the detention of the person so apprehended until the case of such person is tried in the usual form, shall not subject the chief constable or other officer of police to any claim for damages, wrongous imprisonment, or claim of any other kind whatsoever: Provided also that it shall be lawful to liberate any such person without bail, or to discharge him, if the chief constable or other officer deem it proper so to do; and, if any person fail to appear in redemption of his bail or deposit, not only may the same be forfeited, but warrant may be granted for his apprehension.

Intimation to law agent of accused.

15. In any proceedings under this Act the accused if apprehended shall immediately on apprehension be entitled, if he so desires, to have intimation sent to any law agent, and to have a private interview with such law agent prior to being brought

Act, 1908.

16. The forms of procedure under this Act shall be in accordance with the forms contained in Schedules C, D, E, F, and H to this Act, or as nearly conform thereto as the circumstances permit. Warrants of apprehension and search shall be signed by the judge granting the same, but all other warrants, orders of court, and sentences may be signed either by the judge or clerk of court, and execution upon any warrant, order of court, or sentence may proceed either upon such warrant, order of court, or sentence itself or upon an extract thereof issued and signed by the clerk of court. Where, as preliminary to any procedure, a sworn information is required, such information may be sworn to before any judge, whether the subsequent procedure be in his court or another court. It shall be lawful for the High Court, on the application of the Lord Advocate, by Act of Adjournal, to cancel or amend any of the forms of procedure under this Act or to provide additional forms, and to make any rules which may be necessary to give effect to any of the provisions of this Act, and to fix and regulate the fees payable in any proceedings under this Act, and until altered by Act of Adjournal the fees payable in the inferior courts shall be those set forth in Schedule G. to this Act. Nothing in this section shall affect the regulations enacted by the Courts of Law Fees 55 Vict. c. 14 (Scotland) Act, 1895.

17. Where prior to the presentation of a complaint it is necessary to apply to the court for any warrant or order of court as incidental to subsequent proceedings by complaint, or where the court has power to grant any warrant or order of court, although no subsequent procedure by complaint may follow thereon, such application may be by petition at the instance of a prosecutor in the form, or as nearly as may be in the form, contained in Schedule F. to this Act, and, where necessary for the execution of any such warrant or order of court, warrant to break open lock-fast places shall be implied.

18. All proceedings under this Act for the trial of offences or recovery of penalties shall be instituted by complaint in the form contained in Schedule C. to this Act. Such complaint shall be signed by the prosecutor or by any law agent on behalf of a prosecutor other than the public prosecutor of a court, and any law agent may appear for and conduct any prosecution on behalf of a prosecutor other than the public prosecutor of a court. Complaints at the instance of private prosecutors for offences at common law and for statutory offences where imprisonment without the option of a fine is competent shall, unless otherwise provided in any statute, require the concurrence of the procurator fiscal or other public prosecutor of the court in which they are brought.

19. The charge in such complaint shall be stated in accordance with the forms contained in Schedule C. to this Act. No

further specification shall be required than a specification similar to that given in said forms and—

- (1) The description of any offence in the words of the statute or order contravened, or in similar words, shall be sufficient:*
- (2) The statement that an act was done contrary to a statute or order shall imply a statement that the statute or order applied to the circumstances existing at the time and place of the offence, that the accused was a person bound to observe the same, that any necessary preliminary procedure had been duly gone through, and that all the circumstances necessary to a contravention existed. In the case of the contravention of an order such statement shall imply a statement that the order was duly made, confirmed, published, and generally made effectual according to the law applicable to the same, and was in force at the time and place in question; and, where the offence is created by more than one section of one or more statutes or orders, it shall only be necessary to specify the leading section or one of the leading sections:
- (3) Any exception, exemption, proviso, excuse, or qualification, whether it does or does not accompany in the same section the description of the offence in the statute or order creating the offence, may be proved by the accused, but need not be specified or negatived in the complaint, and no proof in relation to such exception, exemption, proviso, excuse, or qualification shall be required on behalf of the prosecution:
- (4) It shall be competent to include in one complaint both common law and statutory charges:
- (5) Where an offence is alleged to be committed in any special capacity, as by the holder of a licence, master of a vessel, occupier of a house, or the like, the fact that an accused person possesses the qualification necessary to the commission of the offence shall, unless challenged by preliminary objection before his plea is recorded, be held as admitted:
- (6) In any proceedings under the Merchant Shipping Acts it shall not be necessary to produce the official register of the ship referred to in such proceedings in order to prove the nationality of said ship, but the nationality of the ship as stated in the complaint shall in absence of evidence to the contrary be presumed:
- (7) In offences inferring dishonest appropriation of property brought before a court whose power to deal with such offences is limited to cases in which the value of such property does not exceed ten pounds, it shall be assumed, and it shall not be necessary to state in the charge, that the value of said property does not exceed

20. On any complaint under this Act being laid before a judge of the court in which the complaint is brought, such judge shall have power on the motion of the prosecutor—

*Orders of
court, war-
rants, &c. on
complaint.*

- (1) To pronounce an order of court assigning a diet for the disposal of the case to which the accused may be cited as after mentioned :
- (2) To grant warrant to apprehend the accused where this appears to such judge expedient :
- (3) To grant warrant to search the person, dwelling-house, and repositories of the accused and any place where he may be found for any documents, articles, or property likely to afford evidence of his guilt or of guilty participation in the premises, and to take possession thereof :
- (4) To grant any other order of court or warrant or interim order of court or warrant which may be competent in the premises.

21. This Act shall be a sufficient warrant for the citation of the accused and witnesses to any ordinary sitting of the court or to any special diet which may be fixed by the court, including any adjournments thereof. Such citation shall be in the forms contained in Schedule D. to this Act, and shall, in the case of the accused, proceed on an *induciae* of at least forty-eight hours, unless in the special circumstances of any case the court fix a shorter *induciae*. It shall be deemed a legal citation of such accused or witness if the citation be delivered to him personally or left for him at his dwelling-place or place of business with some person resident or employed therein, or, if he has no known dwelling-house or place of business, at any other place in which he may at the time be resident, or, in the case of the accused being a master of or seaman or person employed in any ship or vessel, in the hands of a person on board thereof and connected therewith, or, in the case of the accused being a company, association, or incorporation, at their ordinary place of business in the hands of a partner, director, secretary, or other official thereof, or such company, association, or incorporation may be cited in the same manner as if the proceedings were in the civil court. A body of trustees may be cited by serving a complaint on any one of their number resident in Scotland or on their known law agent there.

Citation.

The provisions of this section as to the citation of witnesses shall apply to the citation of witnesses for precognition by the procurator fiscal or burgh prosecutor where the judge on the application of such procurator fiscal or burgh prosecutor shall deem it expedient to grant warrant to cite witnesses for precognition in regard to any offence competent for trial in the court of such judge, and whether or not any person has at the time of such application been charged with such offence.

Apprehension
of witness.

22. Where a witness after being duly cited fails to appear at the diet fixed for his attendance and no just excuse is offered on his behalf, the court may issue a warrant for his apprehension; or the court, if satisfied by evidence on oath that a witness is not likely to attend to give evidence without being compelled so to do, may issue a warrant for the apprehension of such witness in the first instance.

Warrants of
apprehension
and search.
Short forms.

23. Warrants of apprehension and search may be in accordance with the forms contained in Schedule D. to this Act, and all such warrants shall, where it is necessary for their execution, imply warrant to officers of law to break open all shut and lock-fast places, and—

(1) A warrant of apprehension of an accused person in said form shall imply warrant to officers of law to search for and to apprehend the accused, and to bring him before the court issuing such warrant, or before any other court competent to deal with the case, to answer to the charge on which such warrant is granted, and, in the meantime, until he can be so brought, to detain him in a police station house, police cell, or other convenient place, and any person apprehended under such warrant or by virtue of the powers possessed at common law, or conferred by statute, shall wherever practicable be brought before a court competent to deal with such case either by way of trial or by way of remit to another court not later than in the course of the first lawful day after such person shall be taken into custody, such day not being a day set apart for a general fast or a public or local holiday. A warrant of apprehension or other warrant shall not be required for the purpose of bringing before the court an accused person who has been apprehended without a written warrant or who attends without apprehension in answer to any charge made against him:

(2) A warrant of apprehension of a witness in said form shall imply warrant to officers of law to search for and apprehend such witness, and to detain such witness in a police station house, police cell, or other convenient place, until the date fixed for the hearing of the cause, unless sufficient security be found to the amount fixed in such warrant for the appearance of such witness at all diets of court.

Adjournment
for inquiry, &c.

24. The court, in order to allow time for inquiry, or for any other necessary cause, and without calling on the accused to plead to any charge against him, may from time to time continue the case for such reasonable time as may in the circumstances be necessary, not exceeding in all a period of seven days, or on special cause shown fourteen days, from the date of the apprehension of the accused, and may liberate him on bail or

commit him to prison, either without bail or with bail to an amount fixed by such court: Provided that no judge shall be entitled to allow bail in any case which he is not competent to try.

25. Any complaint, warrant, or other proceeding under this Act may without endorsement be served or executed at any place within Scotland by any officer of law, and such service or execution may be proved either by the oath in court of such officer or by production of his written execution. Service or execution out of Scotland shall be regulated by the Indictable Offences Act, 1848, the Indictable Offences Act Amendment Act, 1868, and the Summary Jurisdiction (Process) Act, 1881, and any warrant, order of court, or process under said Acts, may be served or executed in Scotland by any officer of law. The Indictable Offences Act, 1848, and the Indictable Offences Amendment Act, 1868, shall, for the purposes of this Act, apply to all offences which may be tried by the court issuing any competent warrant, order of court, or other process.

Service, &c. in Scotland and out of Scotland.

11 & 12 Vict. c. 42.
31 & 32 Vict. c. 107.
44 & 45 Vict. c. 24.

26. All proceedings under this Act in respect of the contravention of any statute or order shall, unless the statute or order under which the prosecution is raised fix any other period, be commenced within six months after the contravention occurred, and in the case of a continuous contravention within six months of the last date of such contravention, and it shall be competent in such case in any prosecution to include the entire period during which the contravention has occurred. Proceedings shall be held as being commenced within the meaning of this section as of the date when a warrant to apprehend or to cite the accused is granted, provided that such warrant is executed without undue delay.

Limitation of time for bringing proceedings in statutory offences.

27. All penalties, for the recovery of which in Scotland no special provision has been made by statute or order, may be recovered by the public prosecutor in any court having jurisdiction. Where any court has power to take cognizance of offences the penalties attached to which are not defined, the punishment for such offences shall be regulated by that applicable to common law offences in such court.

Public prosecutor may sue for penalties.

28. With regard to the prosecution of offences committed by a company, association, incorporation, or body of trustees, the following provisions shall, without prejudice to any other or wider powers conferred by statute, apply:—

Offences by companies, &c.

- (1) Proceedings may be taken against such company, association, incorporation, or body of trustees, in their corporate capacity, and in that event any penalty imposed shall be recovered by civil diligence in manner hereinafter provided; or

- (2) Proceedings may be taken against an individual representative of such company, association, or incorporation, as follows :—

(a) In the case of an ordinary company or firm, any one of the partners thereof, or the manager or the person in charge or locally in charge of the affairs thereof, may be dealt with as if he was the person offending ;

(b) In the case of an association, incorporation, or incorporated company, the managing director or the secretary, or other principal officer thereof, or the person in charge or locally in charge of the affairs thereof, may be dealt with as if he was the person offending ;

(c) The offence shall be deemed to be the offence of such company, association, or incorporation, and a conviction thereof may be libelled as an aggravation of any subsequent offence of the same nature by the same company, association, or incorporation, although the individuals charged and convicted are different.

PROCEDURE AT TRIAL.

First diet,
objections to
complaint, &c.

29. Where the accused is present at the first calling of the case, the complaint or the substance thereof shall be read to him, and he shall thereupon be asked to plead in common form. He may then, prior to pleading, state objections to the competency or relevancy of the complaint or proceedings, and no such objections shall be allowed at any future diet of the case, unless with the leave of the court on cause shown. It shall not be competent to any person who shall appear to answer to any complaint, or to any law agent allowed to appear for the accused if absent, to plead want of due citation or informality in his citation or in the execution thereof.

Amendment of
complaint.

30. It shall be competent at any time prior to the determination of the case, unless the court see just cause to the contrary, to amend the complaint by deletion, alteration, or addition, so as to cure any error or defect therein, or to meet any objections thereto, or to cure any discrepancy or variance between the complaint and the evidence, and any amendment so made shall be sufficiently authenticated by the initials of the clerk of court ; provided that such amendment shall not change the character of the offence charged, and provided further that, if the court shall be of opinion that the accused may by such amendment be in any way prejudiced in his defence on the merits of the case, the court shall grant such remedy to the accused by adjournment or otherwise as to the court may seem just.

31. Where the accused pleads guilty to the charge or to any part thereof, and such plea is accepted, by the prosecutor, such plea shall be recorded and signed by the judge or clerk of court, and the court shall thereafter dispose of the case at the same or any adjourned diet. The plea and sentence may be combined, in which case one signature shall be sufficient to authenticate both. Plea of guilty.

32. Where the accused pleads not guilty to the charge or guilty to part only thereof, and the prosecutor shall not accept such partial plea, the following provisions shall apply :— Plea of not guilty.

- (1) The court may proceed to trial at once unless either party move for an adjournment and the court shall adjudge it expedient to grant the same ; or
- (2) The court may adjourn the case for trial to as early a diet as is consistent with the just interests of both parties, in which case the prosecutor shall, if desired by the accused, furnish him with a copy of the complaint if he has not already got a copy :
- (3) Where the accused is brought before the court by apprehension he shall be entitled to an adjournment of the case for not less than forty-eight hours, provided that the request for such adjournment is made before the prosecutor has commenced his proof, and the court shall inform the accused of his right to such adjournment ; but the case may proceed to trial at once or on a shorter adjournment than forty-eight hours if the court considers this is necessary to secure the examination of witnesses who otherwise would not be available :
- (4) Where the accused is in custody, he may be committed to prison either without bail or until he finds sufficient bail to appear at such adjourned diet and at all future diets of the case, and the amount of such bail shall be fixed in the minute of adjournment ; or
- (5) The court may in any case where it shall judge it expedient, and whether or not the accused is in custody, instead of fixing bail as aforesaid, appoint the accused to attend at such adjourned diet under a penalty, not exceeding ten pounds, in case he shall fail to appear :
- (6) The court may from time to time, and at any stage of the case, on the motion of either party, or ex proprio motu, grant such adjournments as may be necessary for the proper conduct of the case :
- (7) It shall not be necessary for the prosecutor to establish a charge or part of a charge to which the accused pleads guilty :
- (8) The court may, in any case where it considers such a course expedient, permit any witness for the defence

to be examined prior to evidence for the prosecution having been led or concluded, but in any such case the accused shall be entitled to lead additional evidence after the case for the prosecution is closed.

Accused failing
to appear.

33. Where the accused fails to appear at any diet of which he has received intimation, or to which he has been cited, the following provisions shall apply:—

- (1) The court may adjourn the trial to another diet, and order the accused to attend at such diet, and appoint intimation thereof to be made to him, which intimation shall be sufficiently given by an officer of law, or by registered letter signed by the prosecutor and sent by post to the accused at his last known address, and the production in court of the written execution of such officer or of the post office receipt for such registered letter shall be sufficient evidence of such intimation having been duly given; where from any cause a diet for trial has to be continued from day to day it shall not be necessary to intimate such continuation to the accused:
- (2) Where the accused is charged with any statutory offence involving the imposition of a pecuniary penalty only, in the first instance, or where the statute founded on or conferring jurisdiction authorises procedure in the absence of the accused, the court may, on the motion of the prosecutor and upon proof that the accused has been duly cited, or has received due intimation of the diet where such intimation has been ordered, proceed to hear and dispose of the case in the absence of the accused. Unless the statute founded on authorises conviction in default of appearance, proof of the complaint must be led to the satisfaction of the court. The court in any case to which this subsection applies may, if it shall judge it expedient, allow any law agent to appear and plead for and defend the accused, provided the court is satisfied that he has authority from the accused so to do, and may also allow a plea to be tendered for the accused by a person other than a law agent provided the plea is one of guilty, and the court is satisfied that such person has authority to tender such plea:
- (3) The court may grant warrant to apprehend the accused:*
- (4) The court may, on the motion of the prosecutor, forfeit any bail deposited or found for the appearance of the accused, or, where the accused has been ordered to attend under a penalty, may declare such penalty to be forfeited, and such bail or penalty may, where necessary, be recovered as provided for in section fifty of this Act, and in addition to such forfeiture the court may grant warrant to apprehend the accused.

34. Where the accused has been previously convicted of any offence forming an aggravation of the offence with which he is charged, such previous conviction shall be set forth in the complaint, and— Previous convictions.

- (1) If a plea of guilty is tendered, the judge or clerk of court shall ask the accused if he admits the correctness of such conviction and of its application to him, and if such admission is made the plea shall be held to be a plea of guilty as libelled, and shall be recorded in manner aforesaid:
- (2) If the accused pleads not guilty to the charge and is subsequently convicted thereof, the judge or the clerk of court shall, after conviction, ask the accused whether he admits the previous conviction or convictions libelled, and if such admission is made the fact shall be recorded:
- (3) It shall not be necessary for the prosecutor to produce extracts of any conviction so admitted:
- (4) Where the accused does not admit any conviction so libelled, the prosecutor, unless he withdraws such conviction, shall adduce evidence in proof thereof, either at the first diet or at any adjourned diet:
- (5) A conviction, or an extract conviction of any offence committed in any part of the United Kingdom, bearing to be under the hand of the officer in use to give out such extract conviction, shall be received in evidence without being sworn to by witnesses. An official of any prison in which the accused may have been confined on such conviction shall be a competent and sufficient witness to prove the application thereof to the person accused, although he may not have been present in court at the trial to which such conviction relates. This provision shall be without prejudice to any other competent mode of proving a conviction and the application thereof to the accused. Where in any court a book of record is kept of the convictions in said court containing the like particulars as are inserted in an extract conviction, and where at the end of each day's proceedings the entries in such book are certified as correct by the judge or clerk of court, such entries shall, in any proceedings in such court, be accepted as evidence of such convictions:
- (6) Where the accused is convicted of any offence and also of any aggravation by previous conviction, and is again accused of any offence in regard to which such conviction may be competently used as an aggravation, the production of the prior conviction, or an extract thereof, setting forth the particulars of the previous convictions therein libelled, shall be admissible and sufficient as evidence to prove against

the accused all the previous convictions and aggravations therein set forth:

- (7) Previous convictions of an offence under any statute or order may be libelled as aggravations in any subsequent charge for the same kind of offence or any analogous offence, and a conviction in any part of the United Kingdom of any offence inferring dishonesty may be libelled as an aggravation of any offence inferring dishonest appropriation of property or attempt thereof, and a conviction of any offence inferring disorderly conduct or a breach of public order may be libelled as an aggravation of any other offence inferring disorderly conduct or a breach of public order:
- (8) Nothing herein contained shall prevent evidence of previous convictions being led in causâ where such evidence is competent in support of a substantive charge.

Alibi.

35. If the accused intends to found on a plea of alibi, he shall be bound to give notice thereof to the prosecutor, with particulars as to time and place and of the witnesses by whom it is proposed to prove it, prior to the examination of the first witness for the prosecution, and the prosecutor, on such notice being given, and if he so desires, shall be entitled to an adjournment of the case.

**Witnesses in
certain events
may be
punished.**

36. If any witness shall wilfully fail to attend after being duly cited, or unlawfully refuse to be sworn, or after the oath has been administered to him refuse to answer any question which the court may allow, or to produce documents in his possession when required by the court, or shall prevaricate in his evidence, he shall be deemed guilty of contempt of court and be liable to be summarily punished forthwith for such contempt by a penalty not exceeding three pounds or by imprisonment for any period not exceeding twenty days; and, where such punishment is summarily imposed, the clerk of court shall minute the act or acts constituting the contempt and the statements forming the prevarication, but without prejudice to the prosecutor proceeding by way of formal complaint for such contempt where such summary punishment, as above mentioned, is not imposed. The like penalty as is in this section mentioned shall be incurred by any witness who, after being duly cited by virtue of the provisions contained in section twenty-one of this Act, fails, without reasonable excuse, after receiving at least twenty-four hours' notice, to attend for precognition by a procurator fiscal or burgh prosecutor at the time and place mentioned in the citation served on him, or who refuses when so cited to give information within his knowledge in regard to any matter relative to the commission of the offence in regard to which such precognition is taken.

37. Where a witness is examined upon oath in any case in which the accused is charged with an offence under any statute, and where the same witness is examined at the same diet in subsequent cases against the same or different persons accused of offences under the same statute, it shall not be necessary for the judge to administer the oath to the said witness in the subsequent cases, but it shall be sufficient that the judge shall remind him in each case that he is still on oath.

Administration
of oath to same
witness in cases
at same diet.

38.—(1) Any letter, minute, or other official document issuing from the office or in the custody of any of the departments of state or government in the United Kingdom the production of which in evidence is required in any proceedings under this Act, and which according to the rules and regulations applicable to such departments may be competently produced, shall, when produced, be received as *prima facie* evidence of the matters contained in such letter, minute, or other official document without being produced or sworn to by any witness, and any copy thereof bearing to be certified by any person having authority to certify the same shall be held as equivalent to the original, and no proof of the signature of the person certifying such copy, or of his authority to certify the same, shall be necessary.

Official docu-
ments, &c. as
evidence.

(2) Any order by any of the departments of state or government or any local authority or public body made under powers conferred by any statute, or a print or copy of such order, shall when produced in any proceedings under this Act be received in evidence of the due making, confirmation, and existence of such order without being sworn to by any witness and without any further or other proof, but without prejudice to any right competent to the accused to challenge any such order as being *ultra vires* of the authority making it or on any other competent ground, and where any such order is referred to in the complaint it shall not be necessary to enter it in the record as a documentary production.

(3) The provisions contained in this section shall be deemed to be in addition to, and not in derogation of, any powers of proving documents conferred by statute, or existing at common law.

39. In any proceedings under this Act, it shall not be necessary for either party to lead proof of any fact which is admitted by the opposite party, or to prove any documents the terms and application of which are not in dispute, and copies of any documents may, by agreement of the parties, be accepted as equivalent to the originals, provided that any such admissions shall only be accepted from the accused where he has legal assistance in his defence. Any such admissions may be made by lodging with the clerk of court a minute signed by the person making the admission or by his counsel or law agent, and the

Admissions by
parties.

facts and documents so admitted shall be accepted as if they had been duly proved.

Judges equally
divided in
opinion.

40. In the trial of any case in a court consisting of more than one judge, if the judges are equally divided in opinion as to the guilt of the accused, the accused shall be found not guilty of the charge or part thereof on which such division of opinion exists.

Record.

41. Proceedings under this Act shall be conducted summarily, *vivâ voce*, and, except where otherwise provided, no record need be kept of the proceedings other than the complaint, the plea, a note of any documentary evidence produced, and the conviction and sentence or other finding of the court; but, in the event of any objections being stated to the competency or relevancy of the complaint or proceedings, or to the competency or admissibility of evidence, such objections shall, if either party desires it, be noted in the record.

Proceedings
written or
printed.

42. All proceedings under this Act may be either in writing or printed, or may be partly written and partly printed, and all forms bearing reference to any antecedent form may be either on the same sheet of paper therewith or on a separate sheet attached to it.

CONVICTION AND SENTENCE.

Power to miti-
gate penalties.

43. In all proceedings under this Act in respect of the contravention of any statute or order, where said contravention involves any of the following punishments, *viz.*, imprisonment with or without hard labour, the imposition of any pecuniary penalty, the finding of caution for good behaviour or otherwise, either singly or in combination with imprisonment or fine, the court shall have in addition to the powers already conferred by Act of Parliament the following powers, *viz.* :—

- (1) To reduce the period of imprisonment :
- (2) To impose imprisonment without hard labour :
- (3) To substitute a fine not exceeding twenty-five pounds for imprisonment, either with or without caution for good behaviour, not exceeding the amount and the period competent under this Act :
- (4) To substitute the finding of caution as provided for in this Act for a fine or imprisonment :
- (5) To reduce the amount of any pecuniary penalty :
- (6) To dispense with the finding of caution :

Provided that, where any Act carries into effect a treaty, convention, or agreement with a foreign state, and such treaty, convention, or agreement stipulates for a fine of minimum amount, the court shall not be entitled by virtue of this section to reduce the

amount of such fine below said minimum, and that this section shall not apply to proceedings taken under any Act relating to any of His Majesty's regular or auxiliary forces.

44. Where the accused is convicted of any offence or dealt with under the Probation of Offenders Act, 1907, the court shall have power to order the forfeiture of any instruments or other articles found in his possession used or calculated to be of use in the commission of the offence, and also to order said instruments or other articles to be destroyed or otherwise disposed of.

Forfeiture of
implements.
7 Edw. 7. c. 17

45. The court may allow time for the payment of any penalty, or for the finding of caution.

Time for pay-
ment may be
allowed.

46. The court may in its discretion, if such course appears to meet the justice of the case, dismiss with an admonition any person found guilty of any offence.

Admonition
competent.

47. Where the accused is found liable in any penalty the court may, whether the statute or order imposing such penalty does or does not provide any method for the recovery thereof, adjudge the accused to be imprisoned in the event of failure to pay such penalty, either immediately or within such period as the court may fix; but such imprisonment shall not exceed the respective periods provided for in this Act.

Imprisonment
in default of
payment of
any penalty.

48. The periods of imprisonment for non-payment of any sum imposed by any court of summary criminal jurisdiction as a penalty, or for failure to find caution, shall be regulated thus:—

Periods of im-
prisonment for
non-payment
of fines, &c.

When the amount adjudged to be paid or for which caution is to be found does not exceed } 5s. { The period of imprisonment shall not exceed 5 days.

Exceeds—

5s., but does not exceed 1l.	-	-	-	10 days.
1l., " " " 3l.	-	-	-	20 "
3l., " " " 5l.	-	-	-	30 "
5l., " " " 20l.	-	-	-	60 "
20l.	-	-	-	3 months.

Where the court in imposing any penalty or sum for which caution is to be found does not specify the period of imprisonment in default of payment of such penalty, or on failure to find such caution, such period shall be the maximum period applicable to the non-payment of the amount imposed. If in any sentence or extract sentence the period of imprisonment inserted in default of payment of any penalty or of caution being found is in excess of that competent under this Act, such period of imprisonment shall be held as being reduced to the maximum period under this Act applicable to such default, and the judge who pronounced such sentence shall have power to order such sentence and extract to be corrected accordingly. The periods

of imprisonment in this section shall apply to the non-payment of any sum imposed as aforesaid by a court of summary jurisdiction, notwithstanding that the statute or order imposing the penalty fixes any other or different period of imprisonment. The provisions of this section shall be without prejudice to the operation of the Fine or Imprisonment (Scotland and Ireland) Act, 1899.

62 & 63 Vict.
c. 11.

Recovery by
civil diligence

49. Where any penalty falls to be recovered by civil diligence in terms of this Act or in any case in which the court may think it expedient to order a penalty to be recovered by civil diligence, there shall be added to the finding of the court imposing such penalty the words "and decerns and ordains instant execution by arrestment and also execution to pass hereon by poinding and sale, after a charge of ten free days," and such diligence, whatever the amount of the penalty imposed, may be executed in the same manner as if the proceedings were on an extract decree of the sheriff's small debt court; but where proceedings by civil diligence under this section are adopted imprisonment shall not thereafter be competent.

Finding, for-
feiture, and
recovery of
caution, &c.

50. With regard to the finding, forfeiture, and recovery of caution, the following provisions shall apply:—

- (1) Caution may be found by consignment of the amount thereof with the clerk of court, or by bond of caution. Such bond may be signed by the mark of the cautioner:
- (2) Where caution becomes liable to forfeiture, such forfeiture may be granted by the court on the motion of the prosecutor, and, where necessary, warrant granted for the recovery thereof:
- (3) The court may order any cautioner to be imprisoned in the event of his failing to pay the amount due under his bond within six days after he has received a charge to that effect, and until payment is made, such imprisonment being for a fixed period and regulated by section forty-eight of this Act; or the court, if it shall adjudge it expedient, may, on the application of the cautioner, grant time for payment, or may, instead of imprisonment, order recovery of such caution by civil diligence as provided for in section forty-nine of this Act:
- (4) Bail may be found and forfeited, and the like procedure be competent in default of payment thereof as is hereinbefore in this section provided in regard to caution; and any bail found shall be held to continue in force until the case is finally disposed of, or until the expiry of six months from the date when such bail is found, notwithstanding that the diets may have been from time to time continued or deserted pro loco et tempore, or not called: Provided that the cautioner shall always be entitled to withdraw his bond of caution at any diet of the court at which the accused appears personally:

- (5) Where, instead of being liberated on bail, the accused is liberated under a penalty in the event of his failure to attend at any future diet, and such penalty is declared to be forfeited, the amount thereof may be added to any other penalty subsequently imposed on him, or the court may pronounce a separate finding in respect of such penalty and may grant warrant for the imprisonment of the accused in the event of non-payment thereof.

51. All penalties and expenses imposed under this Act shall be paid to the clerk of court, to be accounted for by him to the person entitled thereto, and it shall not be necessary to specify in any sentence the person entitled to payment of any such penalty or expenses, unless where it is necessary to provide for the division of the penalty. Penalties to whom paid.

52. Where the court awards expenses, the finding regarding such expenses shall be stated in the sentence or other judgment disposing of the case. Such expenses shall, where awarded to the prosecutor, be regulated by and restricted to the fees set forth in Schedule G. to this Act, and shall be recovered in the same manner as any penalty may be recovered. The court may award expenses without imposing any penalty. Expenses may be awarded to or against any private prosecutor, but shall not be awarded to or against any person prosecuting in the public interest, unless the statute or order under which proceedings may be taken directly or by implication authorises such award, but the court may direct the expenses incurred by any prosecutor, public or private, to be met in whole or in part out of any penalty imposed. Where expenses are awarded against the accused the decree shall be subject to the following limitations:— Expenses.

- (a) Where the penalty or penalties imposed shall not exceed twelve pounds the total expenses decerned for shall not exceed three pounds:
- (b) Where the penalty or penalties imposed shall not exceed twelve pounds but it appears to the court that the reasonable expenses of the complainer's witnesses, together with the other expenses, exceed the sums herein-before allowed, the court may direct the expenses of such witnesses to be paid in whole or in part out of the penalty.

Any expenses awarded against a prosecutor shall be recoverable by civil diligence as provided in this Act.

53. The finding and sentence and orders of court, both as regards offences at common law and under any statute or order, shall be minuted in the forms contained in Schedule E. to this Act, which shall be sufficient warrant for all execution thereon and for the clerk of court to issue extracts containing such executive clauses as may be necessary for implement thereof; and, when imprisonment forms part of any sentence or other Forms of conviction and sentence.

judgment, warrant for the apprehension and interim detention of the accused pending his being committed to prison shall, where necessary, be implied. Where a penalty is paid at the bar it shall not be necessary for the court to refer to the period of imprisonment applicable to the non-payment thereof. Where several charges at common law or under any statute or order are embraced in one complaint, a cumulo penalty may be imposed in respect of all or any of such charges of which the accused is convicted. A sentence following on a conviction may be framed so as to take effect on the expiry of any previous sentence which at the date of such conviction the accused is undergoing.

Sentence need not be written out in presence of accused, and may be modified before implement.

54. Every sentence, unless where otherwise provided for, shall be pronounced in open court in presence of the accused, but it shall not be necessary that such sentence be written out or signed in presence of the accused. It shall be competent at any time before imprisonment has followed on a sentence for the court to require the attendance of the accused and to alter or modify said sentence; but no higher sentence than that originally pronounced shall be competent. The signature of the judge or clerk of court to any sentence shall be sufficient also to authenticate the findings on which such sentence proceeds.

Correction of errors.

55. It shall be competent to correct any error in the minutes of procedure or in the extract of any sentence or order at any time prior to execution thereon, and such correction shall be authenticated by the initials of the clerk of court.

Extract.

56. Where imprisonment is authorised an extract of the finding and sentence in the form contained in Schedule E. to this Act shall be a sufficient warrant for the apprehension and commitment of the accused, and no such extract shall be void or liable to be set aside on account of any error or defect in point of form.

As to signing convictions, warrants, &c.

57. In any proceedings in a court consisting of more than one judge the signature of one judge shall be sufficient in all warrants or other proceedings prior or subsequent to conviction, although the presence and signature of two or more judges may be necessary to conviction of the offence in respect of which such warrants are granted or procedure takes place, and it shall not be necessary that the judge so signing shall be one of the judges trying or dealing with the case otherwise.

Conviction of part of a charge only.

58. A conviction of a part or parts only of the charge or charges libelled shall imply dismissal of the rest of the complaint.

Actions of damages against judges, &c.

59. No judge, clerk of court, or prosecutor in the public interest shall be liable to pay or be found liable by any court in damages for or in respect of any proceeding taken, act done, or judgment, decree, or sentence pronounced under this Act, unless

the person suing has suffered imprisonment in consequence thereof and such proceeding, act, judgment, decree, or sentence has been quashed, and unless the person suing shall specifically aver and prove that such proceeding, act, judgment, decree, or sentence was taken, done, or pronounced maliciously and without probable cause; provided that no such liability shall be incurred or found where such judge, clerk of court, or prosecutor shall establish that the person suing was guilty of the offence in respect whereof he had been convicted, or on account of which he had been apprehended or had otherwise suffered, and that he had undergone no greater punishment than was assigned by law to such offence; and every such action shall, unless a shorter period is fixed by the special statute under which proceedings may be taken, be commenced within two months after the proceeding, act, judgment, decree, or sentence founded on. In this section "judge" shall not include "sheriff," and the provisions of this section shall be without prejudice to the privileges and immunities at present possessed by sheriffs.

REVIEW.

60. On the final determination of any cause, either party to the cause may, notwithstanding any provision in any statute excluding review, make application to the court to state a case for the opinion of the High Court, and on such application being made the court, subject to the conditions herein-after mentioned, shall be bound to state a case for such opinion, and it shall thereupon be competent to appeal to and to bring under the review of the High Court by stated case—

- (1) The relevancy of the complaint;
- (2) Any irregularity in procedure;
- (3) Any alleged error of the court in point of law; and
- (4) Generally any matter which may at present be competently reviewed by suspension, advocacy, or appeal under the Heritable Jurisdictions (Scotland) Act, 1746, 20 Geo. 2. c. 43. or otherwise.

61. Application to have a case stated shall be made at the time when judgment is given, or at any time within five days thereafter, and such application shall be signed by the appellant or his agent, and either written on the complaint or lodged with the clerk of court, and where the latter course is adopted the clerk of court shall enter in the proceedings the date when said application is lodged, and shall thereupon intimate the appeal to the respondent.

62. Immediately on such appeal being taken the court shall fix a sum to be consigned by the appellant, or for which caution is to be found, to meet any penalty and expenses imposed and the expenses of the appeal, and the appellant shall not be entitled to have a case stated unless within five days after the date of his

Appeal by
stated case.

How and when
appeal to be
taken.

Court to fix
caution, &c.

appeal he has made consignation, or found such caution, to the satisfaction of the clerk of court and has also paid the clerk his fees for preparing the case: Provided always that the court shall have power in any case where the court deems it expedient so to do to dispense with consignation or the finding of caution, and that a person prosecuting in the public interest shall not be bound to make consignation or to find caution.

Procedure if
appellant in
custody.

63. If the appellant is in custody the court may, on consignation being made or caution being found as mentioned in the immediately preceding section, grant interim liberation on such conditions as to caution or otherwise as the court may fix, and may grant a sist of execution, or may dispense with further consignation or caution, or may make any other interim order which the justice of the case may require, or may refuse to grant interim liberation. An application for interim liberation shall be disposed of by the court within twenty-four hours after such application has been made. The appellant, if dissatisfied with the amount of caution fixed, or on refusal of liberation, may, within twenty-four hours after the judgment of the court, appeal there-against by a note of appeal written on the complaint and signed by himself or his agent, and the complaint and proceedings shall thereupon be transmitted to the clerk of justiciary, and the High Court or any judge thereof, either in court or in chambers, shall, after hearing parties, have power to review the decision of the inferior court and to grant interim liberation on such conditions as such court or judge may think fit, or to refuse interim liberation. In the event of the appellant obtaining interim liberation and thereafter not proceeding with his appeal, the inferior court shall have power to grant warrant to apprehend and imprison him for such period of his sentence as at the date of his liberation remained unexpired, said period to run from the date of his imprisonment under such warrant.

Draft case to
be prepared.

64. The clerk of court shall, within ten days from the application for a stated case, or, when consignation or caution is ordered, within five days from the date when consignation has been made or caution found as aforesaid, prepare a draft stated case, and shall within said period send said draft to the appellant or his agent, and a duplicate thereof to the respondent or his agent, and such case shall be in the form contained in Schedule H. to this Act, and shall set forth the particulars of any matters competent for review which the appellant desires to bring under the review of the High Court, and of the facts, if any, proved in the case, and any point of law decided, and the grounds of the decision.

Adjustment of
case.

65. If the parties or their agents fail within one month after the draft case has been sent to them to agree on the terms of the case, the terms shall be settled by the judge against whose judgment the appeal is taken. In any event the terms of the case shall be subject to the approval of said judge. *

66. On the case being adjusted, and signed by the judge against whose judgment the appeal is taken, the clerk of court shall send it to the appellant and shall also transmit the complaint, productions, and other proceedings in the cause, including the notes of evidence, if any, to the clerk of justiciary.

Transmission
of case.

67. The appellant shall within five days after receiving the case send a copy of the case to the respondent, and shall within the same time transmit the case by post to, or cause it to be lodged with, the clerk of justiciary, together with a certificate under the hand of himself or his law agent of intimation as herein required having been made to the respondent.

Notice of
appeal and
lodging case.

68. The appellant may at any time prior to lodging the case with the clerk of justiciary abandon his appeal by minute signed by himself or his agent, written on the complaint, or lodged with the clerk of court, and intimated to the respondent, but such abandonment shall be without prejudice to any other mode of appeal, review, advocacy, or suspension competent.

Abandonment
of appeal.

69. On the case being lodged with the clerk of justiciary, the appellant shall be held to have abandoned any other mode of appeal which might otherwise have been open to him.

On transmis-
sion of the case
other modes
of appeal held
abandoned.

70. On an appeal being taken the clerk of court shall record on the complaint the different steps of procedure in the appeal, and such record shall be held as evidence of the dates on which the various steps of procedure took place. In appeals the forms of procedure shall be in accordance with the forms contained in Schedule H.

Record of steps
of procedure
in appeal.

71. In computing the period of days in appeals under this Act, Sundays and public holidays shall not be included.

How days
computed.

72. The case shall be heard by the High Court on such date as may be fixed by that court, and the High Court shall have power to affirm, reverse, or amend the determination of the inferior court, or to impose a fine instead of imprisonment where imprisonment has been awarded, or to reduce the period of imprisonment, or to reduce any fine imposed by the inferior court, or to remit the case back to the inferior court to be amended, and thereafter, on the case being amended and returned, to deliver judgment thereon, or to remit the case to the inferior court with their opinion thereon, and, where an appeal against an acquittal is sustained, the High Court may either convict and sentence the accused or may remit the case to the inferior court with instructions to convict and sentence the accused, who shall be bound to attend any diet fixed by such court for this purpose; and the High Court shall have power to award such expenses both in the High and inferior courts as they may think fit. The High Court may remit to any fit person to inquire and report in regard to the facts and circumstances of any cause under

Hearing of
appeal.

appeal, and on considering such report may pronounce judgment. Where the appellant has been granted interim liberation, whether his appeal is under this Act or otherwise, he shall appear personally in court on the day or days fixed for the hearing of his appeal, failing which, unless the court shall on cause shown permit the appeal to be heard, he shall be held to have abandoned the same, and, in the event of said appeal being dismissed or refused in whole or in part, the High Court shall have power to grant warrant to apprehend and imprison such person for any term, to run from the date of his imprisonment, not longer than the period which at the date of his liberation remained unexpired of the term of imprisonment specified in the sentence brought under review.

Prosecutor may
consent to con-
viction being
set aside.

73. Where an appeal has been taken in terms of this Act or by suspension or otherwise, and the prosecutor, on said appeal being intimated to him, is not prepared to maintain the judgment appealed against, he may by a minute signed by him and written on the complaint or lodged with the clerk of court consent to the conviction and sentence being set aside, either in whole or in part, and setting forth the grounds on which he is of opinion that the judgment cannot be maintained, and shall send a copy of said minute to the appellant, and the clerk of court shall thereupon ascertain from the appellant or his agent whether he desires to be heard in the High Court before the appeal is disposed of, and shall note on the record whether or not the appellant desires to be heard, and shall thereafter transmit the complaint and relative proceedings to the clerk of justiciary, who shall lay them before any judge of said court, either in court or in chambers, and such judge, after hearing parties if they desire to be heard, or without hearing parties, may set aside the conviction either in whole or in part and may award expenses to the appellant not exceeding three pounds three shillings, or such judge may refuse to set aside the conviction, in which case the proceedings shall be returned to the clerk of the inferior court, and the appellant shall then be entitled to proceed with his appeal in the same way as if said appeal had been marked on the date when the complaint and proceedings are returned to the clerk of the inferior court. Where proceedings are taken under this section the preparation of the draft stated case shall be delayed pending the decision of the High Court.

High Court
may make
rules.

74. The High Court may from time to time by Act of Adjournal regulate the procedure to be adopted in appeals, and fix the fees to be paid both in the High and the inferior courts in connection with such appeals. Until so regulated the fees payable in the High Court shall be those at the commencement of this Act exigible in processes of review, and the fees payable in the inferior court for a stated case shall be those set forth in Schedule G. to this Act. Nothing in this section shall affect

the regulations enacted by the Courts of Law Fees (Scotland) Act, 1895. 58 Vict. c. 14.

75. No conviction, sentence, judgment, order of court, or other proceeding whatsoever under this Act shall be quashed for want of form, or, where the accused was represented by a law agent, shall be suspended or set aside in respect of any objections to the relevancy of the complaint, or to the want of specification therein, or to the competency or admission or rejection of evidence at the trial in the inferior court, unless such objections shall have been timeously stated at such trial by the law agent of the accused; and subject to the provisions contained in sections sixty and seventy-two hereof no conviction, sentence, judgment, order of court, or other proceeding whatsoever shall in any event be quashed unless on the ground of incompetency, or corruption, or malice, or oppression, or unless the High Court shall be of opinion that the accused has been misled as to the true nature of the charge against him or been prejudiced in his defence on the merits, and that a miscarriage of justice has resulted thereby: Provided always that the High Court may amend any conviction, sentence, judgment, order of court, or other proceeding, or may pronounce such other sentence, judgment, or order as they shall judge expedient.

Convictions,
&c., not to be
quashed on cer-
tain grounds.

76. The provisions regulating appeals shall, subject to the provisions of this Act, be without prejudice to any other mode of appeal competent. Where it is competent to appeal against a sentence of imprisonment to the High Court, or any circuit court thereof, under the Heritable Jurisdictions (Scotland) Act, 1746, or under any Act amending that Act, or applying or incorporating the provisions or any of the provisions of that Act with regard to appeals, such appeal shall, if otherwise well taken, be held to be timeously made if lodged with the clerk of the court in which the sentence appealed against was pronounced and intimated to the respondent at any time during the appellant's imprisonment under the sentence appealed against, or within ten days from the date of the appellant's liberation from imprisonment under said sentence: Provided that this section shall not apply to any appeal against a sentence of imprisonment, unless the imprisonment under such sentence commenced within ten days after the same was pronounced. Any officer of law may serve any bill of suspension or other writs relating to appeals.

Other modes
of appeal
reserved.

20 Geo. 2.
c. 43.

AMENDMENT OF CRIMINAL PROCEDURE (SCOTLAND) ACT, 1887.

77. The Criminal Procedure (Scotland) Act, 1887, is hereby amended as follows:—

- (1) Where the accused is brought before the sheriff for examination on any charge and he or his agent intimates that he does not desire to emit a declaration

Amendment
of Criminal
Procedure
(Scotland)
Act, 1887.
50 & 51 Vict.
c. 43.

in regard to such charge, it shall be unnecessary to take a declaration, and the accused may be committed for further examination or until liberated in due course of law without a declaration being taken, the fact of his not desiring to emit a declaration being recorded in the warrant of commitment, but without prejudice to the accused subsequently emitting a declaration should he intimate to the prosecutor his desire to do so. An accused may be indicted in the name under which he is committed until liberated in due course of law :

- (2) Where there are charges against the accused in different counties he may be brought before the sheriff of any one of such counties at the instance of the Procurator Fiscal of such county for examination on all or any of such charges, and may be dealt with in every respect as if such charges had arisen in the county where he is examined, but without prejudice to the power of the Lord Advocate under section twenty-two of the Criminal Procedure (Scotland) Act, 1887, to determine the court before which the accused shall be tried on such charges :
- (3) Where the accused is convicted on indictment in the sheriff court of any crime and an extract of that conviction is subsequently required in evidence, such extract shall be issued by the clerk of the court having the custody of the record copy of the indictment although the plea of the accused may have been taken and the sentence on him pronounced in another court :
- (4) Sections ten, thirty, subsection (7) of section thirty-four, and sections forty-three, forty-four, forty-five, forty-six, forty-seven, and forty-eight of this Act shall apply to procedure under indictment as well as to summary procedure, the word "indictment" being substituted for the word "complaint" where that word occurs in any of said sections, and subsections (1), (2), and (3) hereof shall apply to procedure under indictment, without prejudice to the accused being tried summarily by the sheriff for any offence in respect of which he has been committed until liberated in due course of law.

SCHEDULES.

SCHEDULE A.

Section 3.

Session and Chapter.	Title of Act.	Extent of Repeal.
9 Geo. 4. c. 29	The Circuit Courts (Scotland) Act, 1828.	Sections 18, 19, and 20.
11 Geo. 4. and 1 Will. 4. c. 37.	The Criminal Law (Scotland) Act, 1830.	Sections 4 and 5.
20 & 21 Vict. c. 72.	The Police (Scotland) Act, 1857.	Section 13.
25 & 26 Vict. c. cciii.	The Aberdeen Police and Waterworks Act, 1862.	Sections 487, 488, 491, 492, 493. Section 494 from the beginning of the section to "competent on such bond." Sections 496, 497, 499, 500, 502, 503, 504, 505, 508, 515, 516, 517, 519.
27 & 28 Vict. c. 53.	The Summary Procedure Act, 1864.	The whole Act.
29 & 30 Vict. c. cclxxiii.	The Glasgow Police Act, 1866.	Section 88 from "to execute any warrant" to "Scotland, and also," and from "they may cite" to "connected therewith." Sections 100, 107, 109, 110, 112, 113, 114, 117, 118, 119, 120, 121, 122, 126, 127, 128, 130, 131, 132, 133, 150, 152, 220.
38 & 39 Vict. c. 62.	The Summary Prosecutions Appeals (Scotland) Act, 1875.	The whole Act.
40 & 41 Vict. c. cxviii.	The Greenock Police Act, 1877.	Sections 136, 243, 244, and 257.
42 & 43 Vict. c. cxxxii.	The Edinburgh Municipal and Police Act, 1879.	Section 324. Section 325 from "but (with the exception" to end of section. Sections 326, 329, 330, 331, 332, 333, 335, 336, 338, 339, 340, 342, 346. Section 349 from beginning of section to "carried into full execution." Section 350, from beginning of section to "competent on the bond." Sections 351, 356, 357.
44 & 45 Vict. c. 33.	The Summary Jurisdiction (Scotland) Act, 1881.	The whole Act.

Session and Chapter.	Title of Act.	Extent of Repeal.
45 & 46 Vict. c. clxi.	The Edinburgh Municipal and Police Extension Act, 1882.	Subsection (13) of section 41.
50 & 51 Vict. c. 35.	The Criminal Procedure (Scotland) Act, 1887.	Section 71.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	Sections 457, 459, 463, 464, 466, 471, 472 to 483 inclusive, 485 to 490 inclusive. Section 491 from the beginning of the section to "competent on the bond." Sections 492, 493, 495, 496, 501, 504, 505, 506, 510, 513, 516. Schedule VII.
55 & 56 Vict. c. 145.	The Glasgow Police (Further Powers) Act, 1892.	Sections 26, 32, 38.
58 & 59 Vict. c. cxliii.	The Glasgow Corporation and Police Act, 1895.	Section 39.

SCHEDULE B.

Section 5.

SECTIONS OF CRIMINAL PROCEDURE (SCOTLAND) ACT, 1887, APPLIED TO SUMMARY PROCEDURE.

* * * * *

Indictments.
Naming of
accused.

IV. A person accused may be named and designed in an indictment according to the existing practice, or he may be named by the name given by him and designed as of the place given by him as his residence when he is examined on declaration, and it shall not be necessary to set forth any other name or names by which he may be known, or any other address or designation.

Nomen juris
unnecessary.

V. It shall not be necessary in any indictment to specify by any nomen juris the crime which is charged, but it shall be sufficient that the indictment sets forth facts relevant and sufficient to constitute an indictable crime.

Case of two or
more persons
charged.

VI. When in any indictment two or more persons are charged together with committing a crime, it shall not be necessary to allege that "both and each or one or other," or that "all and each or one or more" of them committed the crime, or did or failed to do any particular act, but such alternatives shall be implied in all such indictments.

"Guilty, actor
or art and
part."

VII. It shall not be necessary to state that a person accused is "guilty, actor or art and part," in any indictment according to the existing practice, but such charge shall be implied in all indictments.

Qualifying
words to be
implied.

VIII. It shall not be necessary in any indictment to allege that any act of commission or omission therein charged was done or omitted to be done "wilfully" or "maliciously," or "wickedly and feloniously," or "falsely and fraudulently," or "knowingly," or "culpably and recklessly,"

or "negligently," or in "breach of duty," or to use such words as "knowing the same to be forged," or "having good reason to know," or "well knowing the same to have been stolen," or to use any similar words or expressions qualifying any act charged, but such qualifying allegation shall be implied in every case in which according to the existing law and practice its insertion would be necessary in order to make the indictment relevant.

IX. It shall not be necessary in an indictment for a crime punishable under any Act of Parliament to quote the Act of Parliament or any part of it, but it shall be sufficient to allege that the crime was committed contrary to such Act of Parliament, and to refer to the Act and any section of the Act founded on without setting forth the enactment in words at length. Quotation of statutes unnecessary.

X. The latitude now in use to be taken in stating time in indictments at the instance of Her Majesty's Advocate shall be implied in all statements of time where an exact time is not of the essence of the charge, and the latitude now in use to be taken in stating any place in such indictments by adding to the word "at," or to the word "in," the words "or near," or the words "or in the near neighbourhood thereof," or similar words, shall be implied in all statements of place where the actual place is not of the essence of the charge, and where the circumstances of the offence charged make it necessary to take an exceptional latitude in regard to time or place it shall not be necessary to set forth such circumstances in the indictment, or to set forth that the particular time or the particular place is to the prosecutor unknown; provided always that where exceptional latitude is taken, the court shall, if satisfied that such exceptional latitude was not reasonable in the circumstances of the case, give such remedy to the person accused by adjournment of the trial or otherwise as shall seem just. Latitude as to time and place.

XI. The latitude in use to be taken in indictments in describing quantities by the words "or thereby," or the words "or part thereof," or the words "or some other quantity to the prosecutor unknown," or similar words, shall be implied in all statements of quantities, and the latitude in use to be taken in stating details connected with the perpetration of any act regarding persons, things, or modes by inserting general alternative statements followed by the words "to the prosecutor unknown," or similar words, shall be implied in all cases where such statements are in use to be made according to the existing practice. Latitude as to quantities, persons, things or modes.

XII. Where in an indictment, whether raised on Act of Parliament or at common law, buildings, goods, money, or property of any other description are mentioned, it shall not be necessary to allege the property or possession thereof, to be in any person, official, corporation, or company, or that the same were not the property of the accused, and the allegation that the same were not the property of the accused shall be implied in all cases where it is essential to the criminality of the charge. Description of buildings, goods, money, or other property.

XIII. Where in an indictment or any list or inventory relative thereto any person is referred to, it shall be sufficient to describe him by his name and ordinary address, and it shall not be necessary to describe him as "now or lately" residing at such address, but such words shall be implied, and where goods, articles, or things require to be described, it shall be sufficient to describe them in general terms without specifying the materials of which they are made, or any particulars which distinguish them from other goods, articles, or things of a similar kind except in cases in which such particulars are essential to the constitution of the crime charged. Description of persons, goods &c.

"Money" to include coin, bank notes, and post office orders.

XIV. The word money when used in an indictment shall include all current coin of the realm, post office orders and postal orders, and bank or banker's notes, and it shall not be necessary to specify in any statement in an indictment relating to a sum of money whether such sum consisted of gold, silver, or other coin, post office orders or postal orders, or bank or banker's notes, or any of them, but it shall be sufficient to state the sum as consisting of money.

Setting forth documents unnecessary.

XV. Where in an indictment any document requires to be referred to, it shall not be necessary to set forth the document or any part of it in such indictment, but it shall be sufficient to refer to such document by a general description and where it is to be produced by the number given to it in the list of productions for the prosecution.

* * * * *

Reset.

LVIII. Criminal resetting of property shall not be limited to the receiving of property taken by theft or robbery, but shall extend to the receiving of property appropriated by breach of trust and embezzlement, and by falsehood, fraud, and wilful imposition, and under any indictment charging the resetting of property dishonestly appropriated by any of these means, it shall not be necessary to set forth any details of the crime by which the dishonest appropriation was accomplished, but it shall be sufficient to set forth that the person accused received such property, it having been dishonestly appropriated by theft or robbery, or by breach of trust and embezzlement, or by falsehood, fraud, and wilful imposition, as the case may be.

Robbery, &c. to include reset, and theft to include breach of trust, &c.

LIX. Under an indictment for robbery or for theft, or for breach of trust and embezzlement, or for falsehood, fraud, and wilful imposition, a person accused may be convicted of reset; under an indictment for robbery or for breach of trust and embezzlement, or for falsehood, fraud, and wilful imposition, a person accused may be convicted of theft; under an indictment for theft, a person accused may be convicted of breach of trust and embezzlement, or of falsehood, fraud, and wilful imposition, or may be convicted of theft, although the circumstances proved may in law amount to robbery.

Procedure where more than one crime charged.

LX. Where in an indictment two or more crimes or acts of crime are charged cumulatively, it shall be lawful to convict of any one or more of them, and any part of what is charged in an indictment, constituting in itself an indictable crime, shall be deemed separable to the effect of making it lawful to convict of such crime, and where any crime is charged as having been committed with a particular intent or with particular circumstances of aggravation, it shall be lawful to convict of the crime without such intent or aggravation.

Attempt at crime.

LXI. Attempt to commit any indictable crime shall itself be an indictable crime, and under an indictment which charges a completed crime, the person accused may be lawfully convicted of an attempt to commit such crime; and under an indictment charging an attempt, the person accused may be convicted of such attempt although the evidence be sufficient to prove the completion of the crime said to have been attempted; and under an indictment which charges a crime which imports personal injury inflicted by the person accused, resulting in death or serious injury to the person, the person accused may be lawfully convicted of the assault or other injurious act, and may also be lawfully convicted of the aggravation that such assault or other injurious act was committed with intent to commit such crime.

LXII. Where any act set forth in an indictment as contrary to any Act of Parliament is also criminal at common law, or where the facts proved under such an indictment do not amount to a contravention of the statute, but do amount to a crime at common law, it shall be lawful to convict of the common law crime. Statutory offences which are offences at common law.

LXIII. Extracts of previous convictions obtained in any part of the United Kingdom of robbery, theft, stoutthief, reset, forgery and uttering forged documents, falsehood, fraud, and wilful imposition, housebreaking with intent to steal, assault with intent to rob, breach of trust and embezzlement, burglary, larceny, obtaining goods or money by false pretences, swindling, cardsharpping, and of attempts to commit any of these crimes, and of crimes contrary to the Acts of Parliament relating to the Queen's coinage, and of crimes relating to the Queen's coinage at common law, and of crimes inferring dishonest appropriation by post office officials, or of attempts to commit such crimes, whether such convictions be under the Post Office Acts or at common law, and of all other crimes inferring dishonest appropriation of property by a person not the owner thereof, or attempts to commit such crimes, whether in contravention of any Act of Parliament or at common law, may be lawfully put in evidence as aggravations against any person accused on indictment of any of the crimes, or attempts to commit crimes, above set forth, and any aggravation of the crime or attempt which such extract conviction bears to have been found proven, may be lawfully used in evidence to the like effect. Previous convictions of dishonesty.

LXIV. Extracts of previous convictions of any crime inferring personal violence obtained in any part of the United Kingdom may be lawfully put in evidence as aggravations of any crime inferring personal violence, and any aggravation set forth in such extract convictions may be lawfully used in evidence to the like effect. Previous convictions of violence.

LXV. Extracts of previous convictions obtained in any part of the United Kingdom of any crime inferring lewd, indecent, or libidinous conduct may be lawfully put in evidence as aggravations of any crime of a lewd, indecent, or libidinous character, and any aggravation set forth in such extract convictions may be lawfully used in evidence to the like effect. Previous convictions of lewd conduct, &c.

* * * * *

LXVIII. When in the trial of any indictment, the evidence led shall be sufficient to prove the identity of any person, corporation, or company, or of any place, or of any thing, it shall not be a valid objection to the sufficiency of such evidence that any particulars set forth in regard thereto in the indictment have not been proved. Superfluous particulars as to identity.

LXIX. The declaration of the person accused, the formal parts of which may be written or printed, or partly written and partly printed, duly authenticated by the magistrate examiner as having been emitted before him according to the existing law and practice, shall be received in evidence without being sworn to by witnesses, and it shall not be necessary to insert the names of any witnesses to the declaration in any list of witnesses, either for the prosecution or for the person accused, but it shall be competent for the person accused, before such declaration is read to the jury, to adduce as witnesses the persons who were present when the declaration was emitted, and to examine them upon any matters regarding such declaration on which it would be competent to examine them according to the existing law and practice, and to move the court to

Act, 1908.

refuse to allow the declaration to be read on grounds appearing on the face of the declaration itself, or on the ground of what is disclosed in such evidence or on both of these grounds, and where a person accused objects to the declaration, the prosecutor shall be entitled to examine any witnesses in regard thereto, whom the person accused may be entitled to examine as aforesaid.

Sections 18,
19.

SCHEDULE C.

FORMS OF COMPLAINT AND CHARGES.

Under the Summary Jurisdiction (Scotland) Act, 1908.

In the Court of at
The Complaint of Procurator Fiscal (or Burgh Prosecutor)
(or other party entitled to prosecute).

A.B. (Name and address sufficient to distinguish person) (or if present in custody), you are charged at the instance of the Complainer, that on 20th , 19 , in (or at) you did (set forth Charge as in Forms).

Where Previous Convictions are libelled, add—And you have been previously convicted, as in the List annexed, or where a Statute imposes increased penalties for a Second or Third Offence, add—And such Offence is a Second (or Third) Offence you having been previously convicted, as in the List annexed. A statutory charge will conclude this—Whereby you are liable to the penalties set forth in said section (or in section of said Act or otherwise as the case may be, or if preferred the penalties may be shortly set forth).

Previous Convictions where libelled may be detailed thus:—

List of previous convictions applying to you

Date.	Place of Trial.	Court.	Offence.	Sentence.

The Complaint will be signed thus—

C.D. Procurator Fiscal (or Burgh Prosecutor)
or

E.F. Complainer
or

G.H. Agent for Complainer.

The following Forms are additional to those contained in Schedule A to the Criminal Procedure (Scotland) Act, 1887, all of which, in so far as applicable to charges which may be tried summarily, shall be held to be incorporated in this Schedule:—

You did assault C.D. and strike him with your fists.

You did conduct yourself in a disorderly manner and commit a breach of the peace.

You did threaten violence to the lieges and commit a breach of the peace.

Act, 1908.

You did fight and commit a breach of the peace.

You did publicly expose your person in a shameless and indecent manner in presence of the lieges.

You did obtain from C.D. board and lodging to the value of 12s. without paying or intending to pay therefor.

You did maliciously knock down 22 yards of the coping of a wall forming the fence between two fields on said farm.

You did maliciously place a block of wood on the railway line and attempt to obstruct a train.

You did drive a horse and cart recklessly to the danger of the lieges.

You did break into a poultry house and steal three fowls.

You did steal a coat which you obtained from C.D. on the false representation that you had been sent for it by her husband.

having received from C.D. 6*l.* to hand to E.F., you did on (date) at (place) steal said sum.

having received from E.F. a watch in loan, you did on

, at , sell it to C.D., and steal it.

having found a watch, you did, without trying to discover its owner, sell it on , at , to C.D., and steal it.

You did receive from C.D., a private in the Third Battalion

Militia, a military jacket and waist belt, contrary to the Army Act, section 156; whereby, &c.

You did obtain credit from C.D. to the extent of 22*l.* without informing him that you were an undischarged bankrupt, contrary to the Bankruptcy (Frauds and Disabilities (Scotland) Act, 1884, section 4; whereby, &c.

You, being the occupier of said house, did use the same for the purpose of betting with persons resorting thereto, contrary to the Betting Act, 1853, sections 1 and 3; whereby, &c.

You did frequent and loiter in said street for the purpose of betting and receiving bets, contrary to the Street Betting Act, 1906, section 1; whereby, &c.

You having on been convicted on indictment of the crime of theft, aggravated by previous convictions of theft, and sentenced to three years' penal servitude, were on found within the dwelling-house at , occupied by C.D., about to commit theft, contrary to the Prevention of Crimes Act, 1871, section 7; whereby, &c.

You, being a dealer in old metals, did purchase from C.D., sixteen pounds of brass, contrary to the Prevention of Crimes Act, 1871, section 13; whereby, &c.

You did assault C.D., a constable of the shire Police, while engaged in the execution of his duty, and with a stick strike him on the face to the great effusion of blood, contrary to the Prevention of Crimes Act, 1871, section 12; whereby, &c.

You did cruelly illtreat a horse by causing it to draw a cart while it was suffering from a sore on its back under the saddle, contrary to the Cruelty to Animals (Scotland) Act, 1850, section 1; whereby, &c.

You did illtreat and neglect your children E.B., aged seven years; G.B., aged five years; and F.B., aged three years, by failing to provide them with sufficient food and clothing, and by keeping them in a filthy and verminous condition, contrary to the Children Act, 1908, section 12; whereby, &c.

You, being a debtor in a process of sequestration and within four months next before the presentation of the petition for your sequestration, did pawn, otherwise than in the ordinary way of trade, 3 dozen pairs of shoes which you had obtained on credit from C.D., and had not paid for, contrary

Act, 1908.

to the Debtors (Scotland) Act, 1880, section 13 (A), subsection (5); whereby, &c.

You did move into the District of the Local Authority of shire, seventy-five sheep, which had been brought from without their being accompanied by a Declaration signed by their owner contrary to the Regulations dated _____, made by the Local Authority of the County of _____; whereby, &c.

You are the owner of a dog which is dangerous and not kept under proper control, and which on _____ in _____ did chase a flock of sheep contrary to the Dogs Act, 1871, section 2, as amended by the Dogs Act, 1906, section 1, whereby you are liable to be ordered to keep said dog under proper control or to destroy it.

You did for a period of _____ month immediately proceeding _____, fail to provide efficient elementary education in reading, writing, and arithmetic for your children, *J.B.*, aged 13 years; *R.B.*, aged 11 years; and *D.B.*, aged 7 years, contrary to the Education (Scotland) Act, 1901, section 1, and relative enactments; whereby, &c.

_____ being an unauthorised place you did keep for sale 150 lbs. of gunpowder, contrary to the Explosives Act, 1875, section 5; whereby, &c.

You did keep 156 lbs. of gunpowder, and did not keep it in a fireproof safe, contrary to the Explosives Act, 1875, section 22, as amended by section 3, subsection (1), Mode B, of the Order in Council (No. 16); whereby, &c.

_____ being master of the steam trawler *G.N.*, you did use the method of fishing known as otter trawling, contrary to the Herring Fishery (Scotland) Act, 1889, section 6, as amended by the Herring Fishery (Scotland) Act Amendment Act, 1890, section 3; whereby, &c.

_____ being master of the steam trawler *G.N.*, you did use the method of fishing known as otter trawling, contrary to Bye-Law No. _____ made by the Fishery Board for Scotland, dated _____; whereby, &c.

You did, in response to a demand by him for twopence worth of sweet milk, sell to *E.F.* (address), Sanitary Inspector for the County of _____, milk which was not genuine, as it contained less than 3 per cent. of milk fat (or add when appropriate—and less than 8.5 per cent. of milk solids other than milk fat), contrary to the Sale of Food and Drugs Act, 1875, section 6; whereby, &c.

You did induce *J.P.* to engage in an unlawful game called the "three card trick," and cheat him of 1*l.*, contrary to the Prevention of Gaming (Scotland) Act, 1869, section 3; whereby, &c.

You did by night enter on said land with nets for the purpose of taking game, contrary to the Night Poaching Act, 1828, section 1; whereby, &c.; or.

You did by night unlawfully take six rabbits; contrary to, &c.

You did in the daytime trespass on said land in search or pursuit of game (or rabbits), contrary to the Game (Scotland) Act, 1832, section 1; whereby, &c.

You were found in the possession of five hares, a net and six net pins, which hares you had obtained by unlawfully going on land in search or pursuit of game, and which net and net pins you had used for unlawfully killing or taking game, or you had been accessory thereto, contrary to the Poaching Prevention Act, 1862, section 2; whereby, &c.

You did present or cause to be presented to *C.D.*, Assessor for a return in which you falsely stated that the yearly rent of your house, No. _____ Street, _____, was 20*l.*, instead of 30*l.*, contrary to the Lands Valuation (Scotland) Act, 1854, section 7; whereby, &c.

A.B., hotelkeeper, _____ Hotel, _____ you are charged, &c.,

Act, 1903.

sell a half gill of whisky to *C.D.*, he not being a lodger in said hotel or a traveller, contrary to your certificate and the Licensing (Scotland) Act, 1903, section 53; whereby, &c.

You did sell a half gill of whisky to *C.D.*, who was then in a state of intoxication, contrary to your certificate and the Licensing (Scotland) Act, 1903, section 53; and such offence is a second offence, you having been previously convicted as in the list annexed; whereby, &c.

You were found in a state of intoxication and incapable of taking care of yourself, and not under the care or protection of some suitable person, contrary to the Licensing (Scotland) Act, 1903, section 70; whereby, &c.

You did knowingly sell a glass of whisky to *C.D.*, who had been convicted of the offences mentioned in and dealt with under section 72 of the Licensing (Scotland) Act, 1903, contrary to said Act, section 72; whereby, &c.

You did ride upon a bicycle without carrying a lamp constructed, placed, and lighted as required by law, contrary to the Local Government (Scotland) Act, 1889, section 58; whereby, &c.

You did take into your working place 1 lb. of gunpowder in a paper bag, contrary to the Coal Mines Regulation Act, 1887, section 49, General Rule 12 (b); whereby, &c.

You did ride on a hutch without the required permission, contrary to the Coal Mines Regulation Act, 1887, section 51, and to Special Rule 72; whereby, &c.

You did drive a motor car recklessly (or negligently), and knock down and injure *C.D.*, contrary to the Motor Car Act, 1903, section 1; whereby, &c.

You did drive a motor car at a speed exceeding 20 miles per hour, contrary to the Motor Car Act, 1903, section 9; whereby, &c.

You did fail to enter in your Pledge Book the sum of 8s. 1½d., the profit charged on a loan of 25s. to *C.D.*, on security of a watch pawned by him and redeemed on . . . , contrary to the Pawnbrokers Act, 1872, section 12; whereby, &c.

You did act as a pedlar without having obtained a certificate, contrary to the Pedlars' Act, 1871, section 1; whereby, &c.

You did sell to *C.D.* a bottle of . . . , which is a preparation of arsenic and a poison, without distinctly labelling the said bottle with your name and address, and without making, before delivery thereof to him, the necessary entry in a book kept for that purpose, contrary to the Pharmacy Act, 1868, section 17; whereby, &c.

At one o'clock on the morning of said date you did sell to *C.D.* a pie and a bottle of lemonade, contrary to the Burgh Police (Scotland) Act, 1892, section 380, subsection 6; whereby, &c.

You did play at football, to the annoyance of the residents in said street, contrary to the Burgh Police (Scotland) Act, 1892, section 381, subsection 26; whereby, &c.

You kept and still keep nine hens and a cock, which are a nuisance to the inhabitants in the neighbourhood, contrary to the Burgh Police (Scotland) Act, 1892, section 389; whereby you are liable to be ordained to remove such fowls within such time as the court may fix.

Being a known (or reputed) thief, you were found in possession of a watch and chain, without being able to give a satisfactory account of your possession thereof, contrary to the Burgh Police (Scotland) Act, 1892, section 409; whereby, &c.

You did desert (or neglect to maintain) *C.D.*, your wife, and *E.D.* and *G.D.*, your children, whereby they have become chargeable to the said parish of . . . , contrary to the Poor Law (Scotland) Act,

Act, 1908.

You did place in a Post Office letter box a lighted match in a manner likely to injure post letters, contrary to the Post Office (Protection) Act 1884, section 3; whereby, &c.

You did consign, for the food of man, to *E.F.* the carcase of a cow which was unsound and unfit for such food, contrary to the Public Health (Scotland) Act, 1897, section 43, subsection (4); whereby, &c.

You did travel in a railway carriage without having previously paid your fare, and with intent to avoid payment thereof, contrary to the Regulation of Railways Act, 1889, section 5, subsection (2) (a); whereby, &c.

having on within the house in No. Street, given birth to a female illegitimate child, you did fail, within twenty-one days thereafter, to attend personally and give information to *G.D.*, registrar of births, deaths, and marriages for (Registration District), of the several particulars required to be registered touching such birth, contrary to the Registration of Births, Deaths, and Marriages (Scotland) Act, 1854, section 27; whereby, &c.

You did take two salmon during the annual close time by means of cables and sweep nets, contrary to the Salmon Fisheries (Scotland) Act, 1868, section 15; whereby, &c.

You did carry off from said premises the following pointed effects, namely, in fraudem of *C.D.*, a pawning creditor, contrary to the Small Debt (Scotland) Act, 1837, section 20; whereby, &c.

You did refuse to allow your child, *N.B.*, aged eight months, to be vaccinated, contrary to the Vaccination (Scotland) Act, 1863, section 18; whereby, &c.

You had in your possession for use for trade a counter balance which was false, and two weights, which were unjust, contrary to the Weights and Measures Act, 1878, section 25; whereby, &c.

SCHEDULE D.

WARRANTS OF CITATION, APPREHENSION, &c.

Edinburgh, 9th January 190. — The court assigns 16th January 190 at 10 a.m. within the Sheriff Court House, Edinburgh, as a diet in this case.

W.G., Clerk of Court.

This fact only necessary if special diet required.

Edinburgh, 9th January 190. — The court grants warrant to apprehend the said accused.

If search warrant desired, it may be in the following terms:—

Grants warrants to search the person, dwelling-house, and repositories of said accused, and any place where he may be found, and to take possession of the property mentioned or referred to in the complaint, and all articles and documents likely to afford evidence of his guilt or of guilty participation.

A.B., above designed, you are hereby summoned to appear personally on 16th January 190 at 10 a.m., within the Sheriff Court House, Edinburgh, to answer to the complaint against you of which the above is a copy.

Served by me on 9th January 190.

C.D., Police Constable.

Act, 1908.

A note in the following or similar terms may be appended to the service copy of a complaint:—

NOTE.—If you plead not guilty to the above charge your case will be adjourned to a diet to be fixed by the court [or, if the case is to proceed to trial at the first diet, your case will proceed to trial at such diet unless the court grants an adjournment]. If you desire to have witnesses cited for the defence, the police will give you all reasonable assistance to cite them.

To *E.F.* [name and designation].

Citation of witnesses.

You are hereby cited to appear personally on 16th January 190 at 10 a.m. in the City Police Court, Edinburgh, to give evidence for the prosecution in the case against *A.B.* (and you are required to produce . . .).

C.D., Police Constable.

Note to be subjoined to Citations of Witnesses.

Witnesses failing to attend the court without lawful excuse are liable to be apprehended and punished.

Edinburgh, 16th January 190.—The court, in respect *E.F.* a witness in the cause has failed to appear after being duly cited, adjourns the diet till 16th January 190 at 10 a.m., and ordains the accused and witnesses to appear personally at said diet, and grants warrant to apprehend the said *E.F.* and to detain him in any prison or in a police cell until said diet, unless sufficient security to the amount of £ be found for his appearance at all diets of court.

Edinburgh, 9th January 190.—The court on the motion of the Prosecutor continues the case against the accused until January 190, and grants warrant to detain the accused in Prison until that time (or until sufficient security to the amount of £ be found for his appearance at all diets of court).

OFFICER'S EXECUTION OF SERVICE OF COMPLAINT ON AN ACCUSED PERSON.

I, officer of law, upon the day of lawfully summoned [name and designation of accused as in Complaint] to appear before the Court on the day of o'clock noon, to answer to a complaint at the instance of charging him with [state offence]. This I did by delivering a copy of the complaint with citation thereto attached [state how served upon accused, whether personally or left at dwelling-house or otherwise].

C.D., Police Constable.

OFFICER'S EXECUTION OF CITATION OF A WITNESS.

I, officer of law, upon the day of lawfully cited [name and designation of witness] to appear before the Court on the day of to give evidence for the prosecution [or defence] in the complaint at the instance of against [name and designation of accused]. This I did by delivering a citation to that effect [state how served, whether personally or left at dwelling-house or otherwise].

C.D., Police Constable.

Act, 1908.

SCHEDULE E.

MINUTES OF PROCEDURE, &c.

Edinburgh, 9th January 190 .—G.N., judge.

Plea of guilty. Compeared the accused and, in answer to the complaint, pled guilty.

Sentence. Sentence : Twenty-one days' imprisonment.

Whence charged. Compeared the accused and, in answer to the complaint, *A.B.* pled guilty and *C.D.* pled guilty to the third charge.

Sentence. Sentence, *A.B.* Twenty-one days' imprisonment, *C.D.* seven days' imprisonment.

Plea and sentence compared. Compeared the accused, and, in answer to the complaint, pled guilty (or state to what extent plea tendered), and was sentenced to days' imprisonment (or was fined £ and in default of payment days' imprisonment) (or as the case may be).

Plea of not guilty. Compeared the accused, who, in answer to the complaint, pled not guilty.

Adjournment. The court adjourned the diet to 11th January 190 at 10 a.m., and ordained the accused then to appear.

Or,

The court adjourned the diet to 11th January 190 at 10 a.m. and ordered the accused to be imprisoned until that date or until security for £ be found for his appearance at all diets of Court.

Or,

The court adjourned the diet to 11th January 190 at 10 a.m., and ordered the accused to appear personally at that diet under a penalty of £ in default.

Edinburgh, 11th January 190 .—G.N., judge.

Compeared the accused (or the accused failed to appear after being duly cited, or after receiving due intimation of this diet).

Findings. The court found the accused guilty as libelled (or as first (or last) alternately libelled, or state to what extent found guilty), (or not guilty), (or found the charge not proven), (or found *A.B.* guilty as libelled and *C.D.* guilty as second libelled (or, as the case may be)).

Imprisonment. Sentence. days' imprisonment.

Or,

Fine. Fined £ , (or £ each), and in default of payment days' imprisonment (or days' imprisonment each).

Fined £ (including £ expenses), and in default of payment days' imprisonment.

Or,

Time allowed. Fined £ , and in default of payment within days from this date, days' imprisonment.

Or,

Caution. To find £ caution for good behaviour for months, and in default days' imprisonment.

Act, 1908.

Or.

Fined £ , and in default of payment, days' imprisonment
and to find £ caution for good behaviour for months, and in default
days' imprisonment further. Fine and caution

To be imprisoned for days from this date and to find caution for imprisonment
£ for good behaviour for months thereafter, and in default days' and caution.
imprisonment further.

The court found the accused *A.B.* guilty as libelled and fined him £1, Fine imposed
and, in respect the said *C.D.* has conduced to the commission of said offence on Parent in
by habitually neglecting to exercise due care of the said *A.B.*, ordered said lieu of Child.
fine to be paid by the said *C.D.*, and in default of payment sentenced the
said *C.D.* to days' imprisonment.

To receive stripes with the birch rod in presence of Whipping.
surgeon, or, in the event of said surgeon certifying that he is unfit to
undergo such punishment, ordains the said accused [*state what other*
alternative].

Sentence deferred till 190 , when accused ordained to Sentence de-
appear. ferred.

Admonished and dismissed. Admonition.

The court, on the motion of the prosecutor, deserted the diet *pro loco* Desertion of
et tempore. day.

*Where there are several accused and different sentences pronounced
on each, the sentence applicable to each may be minuted under the appro-
priate form.*

BAIL BOND.

I, *C.D.*, do hereby judicially enact and bind and oblige myself as
cautioner and surety that *A.B.* shall appear personally in the Sheriff Court,
Edinburgh, on 16th January 190 , at 10 a.m. and at any other diet to
which the cause may be adjourned, to answer to a complaint at the instingo
of the Procurator Fiscal of Court, charging him with the crime of assault,
and that under a penalty of £ to be paid by me in case of failure, and
to be recovered in the manner prescribed by the Summary Jurisdiction
(Scotland) Act, 1908.

In witness whereof. &c.

C.D.

E.F., Witness.

G.H., Witness.

The court in respect of the failure of the accused to attend this diet on Forfeiture of
the motion of the prosecutor declares the bail of £ (or a pledge, viz.) Bail, Consigned
deposited as security for his appearance to be forfeited and also grants
warrant for his apprehension.

The court, in respect of the failure of the accused to attend at this diet, Forfeiture of
on the motion of the prosecutor declares a bond of caution granted for his bail bond.
appearance under a penalty of £ to be forfeited; further, ordains *C.D.*,
cautioner in said bond, to be charged to make payment to the clerk of court
of said sum within six days after such charge, and in default of payment
to be imprisoned for days from the date of his incarceration unless
payment of said penalty be sooner made, but reserving to the said *C.D.*
within said six days to make application to the court for an extension of
time for payment of said sum if so advised, and grants warrant for the
apprehension of the said *A.B.*

Charge to
cautioner.

To *C.D.* I, officer of law, Edinburgh, hereby charge you to make payment of the sum of £ . being the penalty contained in bond of caution by you for *A.B.*, which bond has been declared forfeited in respect of his non-appearance to answer to the complaint against him as provided for in said bond, the said sum to be paid by you to the clerk of court, Sheriff Court, Edinburgh, within six days after the date of this my charge, under pain of imprisonment for the period of days from the date of incarceration unless said sum be sooner paid.

This charge served by me on 21st January 190

E.F., Police Constable.

If you desire to obtain an extension of time for payment application therefor to the court must be made within six days from this date.

Forms similar to those applicable to the finding and forfeiture of bail may, with the necessary variations, be used for the finding and forfeiture of caution for good behaviour.

EXTRACT.

Under the Summary Jurisdiction (Scotland) Act, 1908.

In the Court of at

Name of accused

Date of conviction

Offence of which convicted

Imprisonment.

Sentence. Imprisonment days.

In respect of which sentence warrant is hereby granted to officers of law to convey the accused to the prison of [place] and for the detention of the accused therein for days from the date of imprisonment.

H.G., Clerk of Court.

Fine or
imprisonment
(whichever).

Sentence, £ fine or days' imprisonment. In respect of which sentence warrant is hereby granted to officers of law to convey the accused to the prison of [place] and for the detention of the accused therein until said fine is paid, but not exceeding days from the date of imprisonment.

Fine or
imprisonment.
(Whichever).

Sentence, £ fine (payable within days) or days' imprisonment.

In respect of which sentence, the period allowed for payment of said fine having expired and said fine not having been paid, warrant is hereby granted to officers of law to convey the accused to the prison of [place] and for the detention of the accused therein until said fine is paid, but not exceeding days from the date of imprisonment.

Caution.

Sentence, £ caution for good behaviour for six months (from date of conviction) or days' imprisonment.

In respect of which sentence warrant is hereby granted to officers of law to convey the accused to the prison of [place] and for the detention of the accused therein until said caution is found, but not exceeding days from the date of imprisonment.

Fine and
caution.

Sentence, £ fine or days' imprisonment

and
caution for good behaviour for months (from payment of said fine or from the expiry of the period of imprisonment for non-payment) or days' imprisonment further.

Act, 1908.

In respect of which sentence warrant is hereby granted to officers of law to convey the accused to the prison of [place] and for the detention of the accused therein until said fine is paid and said caution is found, the detention for non-payment of said fine not exceeding days from the date of imprisonment, and the detention for failure to find said caution not exceeding days further from payment of said fine or from expiry of the term of imprisonment for non-payment thereof.

Sentence. Imprisonment days and £ caution for imprisonment
 good behaviour for months thereafter, or days and caution.
 imprisonment.

In respect of which sentence warrant is hereby granted to officers of law to convey the accused to the prison of [place] and for the detention of the accused therein for days from the date of imprisonment and for his further detention thereafter until said caution is found, but not exceeding days further.

The necessary variations to meet different sentences will be made on this extract. An extract in this form shall be applicable either to sentence on a plea of guilty or on conviction. Where an extract is required for production as evidence of previous conviction, any particulars as to prior convictions may be set forth in a schedule annexed to the extract.

FORMS UNDER PROBATION OF OFFENDERS ACT, 1907.

The court, being of opinion that the charge against the accused is Probation proved by his own admission [or by evidence adduced] and being also of Order. opinion that it is expedient to release the accused on probation under The Probation of Offenders Act, 1907, orders that the accused be discharged on entering into his own bond to observe the following conditions of discharge, viz. :—

- (1) To appear for conviction and sentence when called on, at any time within months from this date, under a penalty of £
- (2) In the meantime to be of good behaviour.
- (3) To remain during the said period under the supervision of probation officer, and to conform to his directions as to conduct and residence.
- (4) To remain in any employment which he may obtain or which may be found for him unless he has reasonable excuse for leaving the same; and to perform the duties assigned to him in such employment.
- (5) Not to associate with thieves or other undesirable persons or frequent undesirable places.
- (6) To abstain from intoxicating liquor.

I, A.B., do hereby, judicially bind and oblige myself in terms of said Bond. Act and of the above Order that I will observe and conform to all the conditions set forth in the above Order which are hereby held as repeated and of which Order I hereby acknowledge to have received a copy.

A.B.

At the day of 190 . In presence of Oath of prob-
 [judge] bation officer
 Compared , probation officer within designed, who, being on failure of
 solemnly sworn and examined, deposes that the said A.B. has failed to accused to
 observe his

Act, 1908.

observe the conditions of his bond in respect that *[set forth shortly particulars as to such failure]* All which is truth as the deponent shall answer to God.

[Signatures of probation officer and judge.]

Warrant to
summon.

So die. The court grants warrants to officers of law to summon the said *A.B.* to appear for conviction and sentence on the within complaint on _____ in the _____ court.

[Clerk of Court.]

or

Warrant to
apprehend.

The court grants warrant to apprehend the said *A.B.*

[Judge.]

Summons by
decer.

A.B. *[designed]* You are hereby summoned to appear for conviction and sentence on _____ in the _____ court at _____ for the offence in respect of which you were on _____ placed on probation under bond signed by you on said date, you having failed to observe the conditions of your bond, viz. *[set forth shortly the particulars of failure]* with certification that in the event of your failing to attend warrant may be issued for your apprehension.

[Police Constable.]

[Place and date.] Compeared the said *A.B.* The court having made inquiry and being satisfied that the said *A.B.* had failed to observe the conditions of his bond found him guilty of the offence in the foregoing complaint and sentenced him *[set forth sentence].*

The necessary variations may be made on the above forms to meet the special circumstances of any case. If the bond is not written on the complaint the conditions prescribed by the court will be detailed in it.

Forms 18, 19.

SCHEDULE F.

INCIDENTAL APPLICATIONS.

Under the Summary Jurisdiction (Scotland) Act, 1908
In the _____ Court at _____

The Petition of
Humbly sheweth—

That *[state the circumstances and the statute or statutes, if any, on which the application is based].*

The petitioner therefore craves the court *[set forth warrant or order desired].*

According to Justice, &c.

EXAMPLES OF CRAVES FOR WARRANTS AND ORDERS OF COURT.

(a) To grant warrant to officers of law to search the premises at _____ occupied by _____ for the stolen property mentioned in the petition *[or, as the case may be]* and to take possession thereof and convey it to _____

(b) To seize and destroy the carcass referred to in the petition

(c) To order the property mentioned in the petition to be restored to the petitioner on proof thereof being given that such property was stolen and that the petitioner is the true owner or possessor thereof.

(d) To remit the accused to the sheriff of *[place]* *(or, as the case may be)*, and meantime to grant warrant to convey him to the prison *(or police cells)* of *[place]*, thereafter to be dealt with in due course of law.

FORM OF WARRANT OR ORDER TO BE WRITTEN ON SUCH PETITION.

[Place and date.] The court having considered the foregoing petition grants warrant as craved.

SCHEDULE G.

Sections 16, 17, 18, 19, 20, 21, 22, 23, 24

TABLE OF FEES.

I.—To the Procurator Fiscal or qualified Law Agent acting for a Prosecutor other than the public prosecutor of a court.	To the bar officer for whole proceedings—	£	s.	d.	
	If plea of guilty	-	0	0	6
	If proof led	-	0	1	0

£ s. d.

For drawing the complaint and whole proceedings prior to trial	-	0	7	6
Each copy of complaint for service	-	0	1	0

Attending a trial—				
If plea of guilty	-	0	5	0
If proof led	-	0	7	6
If case adjourned for second diet	-	0	5	0

II.—Court or Clerk's Fees.

For each complaint	-	0	2	6
For whole proceedings at trial—				
If plea of guilty	-	0	2	6
If proof led	-	0	5	0

Extract of any judgment, conviction, or order	-	0	1	0
Fee for preparing stated case	-	1	10	0

III.—Officer's Fees.

For serving each complaint and returning execution	-	0	1	6
For citing each witness	-	0	0	6
For apprehending a respondent or witness	-	0	2	6
For each hour the prisoner is necessarily in the custody of the officer beyond the first	-	0	1	0

In any case where a concurrent or assistant is required he will be allowed a sum equal to two-thirds of the fee payable to the officer for the same business.

In addition, necessary travelling expenses to be paid.

IV.—Witnesses.

Such reasonable fees and expenses as may be sanctioned by the court.

These fees do not apply to Sheriff Court proceedings regulated by Act of Sederunt.

SCHEDULE H.

Sections 16, 17, 18, 19, 20, 21, 22, 23, 24

FORMS OF PROCEDURE IN APPEALS.

STATED CASE.

In the Court of held at
Case for the opinion of the High Court of Justiciary at Edinburgh.
In causa A.B. v. C.D.

This is a cause [here state concisely and without argument the nature of the cause and the facts if any admitted or proved in evidence, any directions to the admission or rejection of evidence taken in the proof.

the grounds of the decision, and any other matters necessary to be stated for the information of the superior court].

The question submitted for the opinion of the Court is :—

[Here state the question or questions erbatim, for the opinion of the Court].

This case is stated by me [or us].

(Signature of the Inferior Judge, or preses if more than two Judges.)

MINUTES OF PROCEDURE.

Edinburgh. January 190 .—The said *A.B.* craves the court to state a case for the opinion of the High Court of Justiciary.

A.B.,

or C.D., Agent for the said A.B.

Ex die the court fixes £ as the sum to be consigned by said appellant, and grants interim liberation without further caution.

Ex die £ consigned.

January 190 .—Draft case sent to appellant and duplicate thereof to respondent.

February 190 .—Case returned adjusted by parties.

February 190 .—Case signed and sent to appellant and complaint and productions transmitted to clerk of justiciary.

Where Prosecutor consents to Conviction being set aside.

January 190 .—The prosecutor consents to the conviction in this case being set aside by the High Court in respect [*set forth grounds on which consent given*].

(To be signed by the prosecutor or his agent.)

January 190 .—The appellant intimated that he did not desire to be heard with reference to the above minute by the prosecutor.

Ex die case transmitted to clerk of justiciary.

The above Minutes of Procedure will, except where otherwise stated, be signed by the Clerk of the Court.

CHAPTER 66.

An Act to prevent disturbance of Public Meetings.

[21st December 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Penalty on
rulegiont to
break up pub-
ic meeting.

1.—(1) Any person who at a lawful public meeting acts in a disorderly manner for the purpose of preventing the transaction of the business for which the meeting was called together shall be guilty of an offence, and, if the offence is committed at a political meeting held in any parliamentary constituency between the date of the issue of a writ for the return of a